
CITY OF GALLATIN COUNCIL MEETING

October 20, 2020

6:00 pm

ELECTRONIC MEETING

Pursuant to Governor Lee's Executive Orders No. 16, No. 34, No. 51 and No. 60, and the need to limit the community spread of COVID-19, the October 06, 2020 Gallatin City Council Meeting will be held by electronic means. The meeting will be live-streamed to protect the public health, safety and welfare of the Council and citizens of Gallatin.

Join the Zoom Meeting at <https://us02web.zoom.us/j/83614937646>, dial +1 470 381 2552 or +1 470 250 9358, and enter Webinar ID: 836 1493 7646.

- Call to Order – Mayor Brown
- Invocation
- Roll Call: Alexander – Vice Mayor Camp – Fann – Fennell – Hayes – Love – Overton
- Approval of Minutes: October 06, 2020 City Council Electronic Meeting
- Public Recognition on Agenda-Related Items
- Mayor's Comments

AGENDA

1. **Second Reading Ordinance No. 02009-41** An ordinance of the City of Gallatin, Sumner County, Tennessee, rezoning portions of two (2) lots and portions of two (2) parcels totaling approximately 10.02 +/- acres of the Greensboro Village PUD less right-of-way of Greensboro Drive and GreenLea Boulevard, from the R6-High Density Residential District to the MRO (PUD)–Multiple Residential and Office (Planned Unit Development) District, located east and west of Greensboro Drive; authorizing the revision to be indicated on the Official Zoning Atlas; repealing conflicting ordinances; providing for severability, and providing for an effective date. **(Councilman Hayes)**
2. **Second Reading Ordinance No. 02009-42** An ordinance of the City of Gallatin, Sumner County, Tennessee, approving a Preliminary Master Development Plan for the Noble Park Townhomes on two (2) parcels (Tax Map 126L, Group C, Parcel 026.00 & 027.00), totaling 2.65 +/- acres, located north of Coles Ferry Road and west of Airport Road, authorizing the revision to be indicated on the Official Zoning Atlas; repealing conflicting ordinances; providing for severability, and providing for an effective date. **(Vice Mayor Camp)**
3. **Second Reading Ordinance No. 02009-44** An ordinance amending Gallatin Municipal Code, Chapter 5, Buildings and Building Regulation and Chapter 9, Fire Protection and Prevention **(Councilman Overton)**
4. **Second Reading Ordinance No. 02009-45** Ordinance appropriating and correcting Environmental Services revenue for FY 2021 **(Councilman Alexander)**
5. **Second Reading Ordinance No. 02009-46** Ordinance appropriating \$5,042.45 for legal services **(Councilman Fann)**
6. **First Reading Ordinance No. 02010-47** An ordinance of the City of Gallatin, Sumner County, Tennessee, rezoning a 47.51 +/- acre portion of the Greensboro Village PUD (Tax Map 136, Parcel 004.04), from the MRO (PUD)-Multiple Residential and Office (Planned Unit Development) District to the SP-Specific Plan District, and approving an Amended Preliminary Master Development Plan for Greensboro North TRD (Transit Ready Development), totaling 196.45 acres, located east and west of GreenLea Boulevard; authorizing the revision to be indicated on the Official Zoning Atlas; repealing conflicting ordinances; providing for severability, and providing for an effective date. **(Councilman Hayes)**

7. **Resolution No. R2009-50** A resolution of the City of Gallatin, Sumner County, Tennessee, adopting a Plan of Services for the annexation of 12.91 +/- acres of Hartsville Pike (SR25) public right-of-way, located adjacent to the current city limits, from Airport Road to west of Hartsville Lane (private street), and providing for an effective date. **(Councilwoman Love)**
8. **Resolution No. R2009-51** A resolution of the City of Gallatin, Sumner County, Tennessee, annexing a 12.91 +/- acres of Hartsville Pike (SR25) right-of-way, located adjacent to the current city limits, from Airport Road to west of Hartsville Lane (private); authorizing the annexed right-of-way to be indicated on the Official Zoning Atlas; authorizing assignment of annexed area to a council district; repealing conflicting ordinances; providing for severability, and providing for an effective date. **(Councilwoman Love)**
9. **Resolution No. R2009-53** Initial resolution authorizing the issuance of not to exceed \$17,500,000 of general obligation bonds of the City of Gallatin, Tennessee **(Councilman Hayes)**
10. **Resolution No. R2009-54** A resolution authorizing the issuance, sale and payment of general obligation bonds of the City of Gallatin, Tennessee an aggregate principal amount of not to exceed \$17,500,000; and providing for the levy of taxes for the payment of debt service on the bonds **(Councilman Hayes)**
11. **Resolution No. R2010-55** Resolution authorizing the Mayor to sign Contract "520", 2020 with J. Cumby Construction, Inc. **(Councilman Fennell)**
12. **Resolution No. R2010-56** Resolution authorizing the Mayor to sign Contract "620", 2020 with Hawkins & Price, LLC. **(Vice Mayor Camp)**
13. **Resolution No. R2010-57** Resolution authorizing the Gallatin Public Works Department to apply for the State of Tennessee Volkswagen Diesel Settlement Medium and Lark Truck Grant through Tennessee Department of Environment and Conservation **(Councilman Fennell)**
14. **Resolution No. R2010-58** Resolution accepting public improvements by the City of Gallatin, Tennessee Cumberland Place North, Phase 1, Section 4 **(Councilman Overton)**
15. **Resolution No. R2010-59** Resolution appointing Robert Montgomery and Brian (Matt) Harris to Gallatin Construction Board of Adjustments and Appeals **(Councilman Fann)**
16. **Resolution No. R2011-60** Resolution authorizing Sumner County Government to construct an addition to Fire Station #3, 860 Red River Road for the purpose of housing an ambulance and EMS personnel **(Councilman Alexander)**

- Other Business
- Public Recognition on Non-Agenda-Related Items
- Adjourn

City of Gallatin City Council Electronic Meeting

October 6, 2020

Pursuant to Governor Lee's Executive Orders #16, #34, #51 and #60 and the need to limit the community spread of COVID-19, the October 6, 2020 Gallatin City Council Meeting was held by electronic means. The meeting was live-streamed to protect the public health, safety and welfare of the Council and citizens of Gallatin. Instructions for public participation in the meeting were available on the City's website.

Mayor Paige Brown called the meeting to order at 6:03 P.M.

Mayor read Governor Lee's Executive Orders #16, #34, #51 and #60.

Councilman Overton made motion to allow the meeting electronically; Councilwoman Love seconded.

Mayor Brown called for a roll call vote by City Recorder Connie Kittrell.

City Recorder Connie Kittrell called the roll call vote:

Vice Mayor Steve Camp	Yes
Councilman John D. Alexander	Yes
Councilman Steve Fann	Yes
Councilman Shawn Fennell	Yes
Councilman Craig Hayes	Yes
Councilwoman Lynda Love	Yes
Councilman Jimmy Overton	Yes

Motion passed with 7 ayes and 0 nays.

Councilman John D. Alexander led the opening prayer.

Mayor called for a roll call vote for those present.

City Recorder Connie Kittrell called the roll and the following were present.

Council

City Council Minutes
October 6, 2020

Vice Mayor Steve Camp	Present
Councilman John D. Alexander	Present
Councilman Steve Fann	Present
Councilman Shawn Fennell	Present
Councilman Craig Hayes	Present
Councilwoman Lynda Love	Present
Councilman Jimmy Overton	Present

Department Heads/Others Present

Bill McCord, City Planner	James Fenton, EDA Director
Chuck Stuart, Building Official	Jeff Hentschel, Communications Director
Connie Flood, H.R. Director	Lori Smiley, I.T. Director
Connie Kittrell, City Recorder	Rachel Nichols, Finance Director
David Brown, Parks & Rec. Director	Susan High-McAuley, City Attorney
David Gregory, Public Utilities Director	Victor Williams, Fire Chief
DeWayne Rogers, Assistant Engineer	Zach Wilkinson, Public Works Superintendent
Don Bandy, Police Chief	

Approval of Minutes

Mayor presented the September 1, 2020 and September 15, 2020 City Council Electronic minutes for approval.

Councilman Alexander made motion to approve; Councilman Overton seconded.

City Recorder Connie Kittrell called the roll call vote:

Vice Mayor Steve Camp	Yes
Councilman John D. Alexander	Yes
Councilman Steve Fann	Yes
Councilman Shawn Fennell	Yes
Councilman Craig Hayes	Yes
Councilwoman Lynda Love	Yes
Councilman Jimmy Overton	Yes

Motion passed with 7 ayes and 0 nays.

Public Recognition on Agenda Related Items

Mayor opened public recognition on agenda related items.

Communications Director Jeff Hentschel stated there was no one logged in for public recognition on agenda related items.

With no one wishing to speak Mayor closed public recognition on agenda related items.

Mayor's Comments

- Mayor complimented city employees, vendors and citizens on the Main Street Festival.
- Mayor reminded everyone to use caution for COVID-19.
- Mayor mentioned that Channel 2 - WKRN has recently aired several positive stories about the city.

Agenda

1. Ordinance #O2009-41 – Public Hearing

Councilman Hayes presented this ordinance of the City of Gallatin, Sumner County, Tennessee, rezoning portions of two (2) lots and portions of two (2) parcels totaling approximately 10.02 (+/-) acres of the Greensboro Village PUD less right-of-way of Greensboro Drive and GreenLea Boulevard, from the R6-High Density Residential District to the MRO (PUD)-Multiple Residential and Office (Planned Unit Development) District, located east and west of Greensboro Drive; authorizing the revision to be indicated on the Official Zoning Atlas; repealing conflicting ordinances; providing for severability, and providing for an effective date.

Mayor Brown opened the public hearing.

Communications Director Jeff Hentschel opened the lines for the participants to speak.

With no one wishing to speak Mayor closed public hearing.

2. Ordinance #O2009-42 – Public Hearing

Vice Mayor Camp presented this ordinance of the City of Gallatin, Sumner County, Tennessee, approving a Preliminary Master Development Plan for the Noble Park Townhomes on the two (2) parcels (Tax Map 126L, Group C, Parcel 026.00 & 027.00), totaling 2.65 (+/-) acres, located north of Coles Ferry Road and west of Airport Road, authorizing the revision to be indicated on the Official Zoning Atlas; repealing conflicting ordinances; providing for severability, and providing for an effective date.

Mayor opened the public hearing.

Communications Director Jeff Hentschel opened the lines for the participants to speak.

With no one wishing to speak Mayor closed public hearing.

3. Resolution #R2009-51 – Public Hearing

Councilwoman Love presented this resolution of the City of Gallatin, Sumner County, Tennessee, annexing a 12.91 (+/-) acres of Hartsville Pike (SR25) right-of-way, located adjacent to the current city limits, from Airport Road to west of Hartsville Lane (private); authorizing the annexed right-of-way to be indicated on the Official Zoning Atlas; authorizing assignment of annexed area to a council district; repealing conflicting ordinances; providing for severability, and providing for an effective date.

Mayor opened the public hearing.

Communications Director Jeff Hentschel opened the lines for the participants to speak.

With no one wishing to speak Mayor closed public hearing.

4. Dangerous Building Complaint and Show Cause Hearing-511 Blythe Avenue-Luther Brooks

City Attorney Susan High-McAuley explained the process for dangerous buildings and how notices were provided to the owner(s) and any heirs.

Ms. High-McAuley stated the owner Mr. Brooks is deceased and there has been no contact received from any possible heirs.

Building Official Chuck Stuart presented the findings for this dangerous building and recommended the building be demolished.

Communications Director Jeff Hentschel opened the lines for the participants to speak.

With no one wishing to speak the lines were closed.

Councilman Overton made motion to demolish this building in two weeks; Councilman Hayes seconded.

City Recorder Connie Kittrell called the roll call vote:

Vice Mayor Steve Camp	Yes
Councilman John D. Alexander	Yes
Councilman Steve Fann	Yes
Councilman Shawn Fennell	Yes
Councilman Craig Hayes	Yes
Councilwoman Lynda Love	Yes
Councilman Jimmy Overton	Yes

Motion passed with 7 ayes and 0 nays.

5. Dangerous Building Complaint and Show Cause Hearing-756 East Main Street-Estate of Nancy Brooks

City Attorney Susan High-McAuley explained how notices were provided to the owner(s) and any heirs.

Mrs. High-McAuley stated there are heirs to this property and the court has appointed an attorney to represent the estate.

Building Official Chuck Stuart presented the findings for this dangerous building and recommended this building be demolished.

Council discussed.

Communications Director Jeff Hentschel opened the lines for the participants to speak.

With no one wishing to speak the lines were closed.

Councilman Hayes made motion to demolish this building in thirty days; Councilman Alexander seconded.

City Recorder Connie Kittrell called the roll call vote:

Vice Mayor Steve Camp	Yes
Councilman John D. Alexander	Yes
Councilman Steve Fann	Yes
Councilman Shawn Fennell	Yes
Councilman Craig Hayes	Yes
Councilwoman Lynda Love	Yes
Councilman Jimmy Overton	Yes

Motion passed with 7 ayes and 0 nays.

**6. Dangerous Building Complaint and Show Cause Hearing-548 Magnolia Street-
Nancy G. Duncan**

City Attorney Susan High-McAuley explained how notices were provided to the owner(s) and any heirs.

Ms. High-McAuley stated this building was sold and she is in the process of contacting the new owners.

Building Official Chuck Stuart recommended council defer this hearing for thirty days.

Councilman Overton made motion to defer; Councilman Alexander seconded.

City Recorder Connie Kittrell called the roll call vote:

Vice Mayor Steve Camp	Yes
Councilman John D. Alexander	Yes
Councilman Steve Fann	Yes
Councilman Shawn Fennell	Yes
Councilman Craig Hayes	Yes
Councilwoman Lynda Love	Yes
Councilman Jimmy Overton	Yes

Motion passed with 7 ayes and 0 nays.

**7. Dangerous Building Complaint and Show Cause Hearing-408 Carson Street-
Ruby Vaughn**

City Attorney Susan High-McAuley explained how notices were provided to the owner(s) and any heirs.

Ms. High-McAuley stated the owner is deceased and there has been no contact received from any possible heirs.

Building Official Chuck Stuart presented the findings for this dangerous building and recommended this building be demolished in two weeks.

Councilman Alexander made motion to deem this a dangerous building unfit for human occupation and demolish in two weeks; Councilman Hayes seconded.

Communications Director Jeff Hentschel opened the lines for the participants to speak.

With no one wishing to speak the lines were closed.

Council discussed.

City Recorder Connie Kittrell called the roll call vote:

Vice Mayor Steve Camp	Yes
Councilman John D. Alexander	Yes
Councilman Steve Fann	Yes
Councilman Shawn Fennell	Yes
Councilman Craig Hayes	Yes
Councilwoman Lynda Love	Yes
Councilman Jimmy Overton	Yes

Motion passed with 7 ayes and 0 nays.

8. Dangerous Building Complaint and Show Cause Hearing-219 Drivers Lane-William S. Hill

City Attorney Susan High-McAuley explained how notices were provided to the owner(s) and any heirs.

Ms. High-McAuley stated the owner William Hill called before the meeting.

Building Official Chuck Stuart recommended thirty days for the owner to bring the home in compliance concerning the living conditions.

Councilman Overton made motion to defer for thirty days; Councilwoman Love seconded.

Economic Development Agency Director James Fenton offered to seek resources to help the owner find appropriate living quarters.

Officer Jessica Jackson gave further details concerning this dangerous building.

Communications Director Jeff Hentschel opened the lines for the participants to speak.

With no one wishing to speak the lines were closed.

City Recorder Connie Kittrell called the roll call vote:

Vice Mayor Steve Camp	Yes
Councilman John D. Alexander	Yes
Councilman Steve Fann	Yes
Councilman Shawn Fennell	Yes
Councilman Craig Hayes	Yes
Councilwoman Lynda Love	Yes
Councilman Jimmy Overton	Yes

Motion passed with 7 ayes and 0 nays.

9. Ordinance #O2009-40 – Second Reading

Councilman Fennell presented this ordinance appropriating \$127,769 from Project Woolhawk for Engineering Department Expenses.

Councilman Fennell made motion to approve; Councilwoman Love seconded.

Mayor called for a roll call vote.

City Recorder Connie Kittrell called the roll call vote:

Vice Mayor Steve Camp	Yes
Councilman John D. Alexander	Yes
Councilman Steve Fann	Yes
Councilman Shawn Fennell	Yes
Councilman Craig Hayes	Yes
Councilwoman Lynda Love	Yes
Councilman Jimmy Overton	Yes

Motion passed with 7 ayes and 0 nays.

10. Ordinance #O2009-43 – Second Reading

Councilman Fennell presented this ordinance amending Gallatin Municipal Code, Chapter 5, Buildings and Building Regulations, Section 5-58, Amendments to International Building Code.

Councilman Fennell made motion to approve; Councilman Alexander seconded.

Mayor called for a roll call vote.

City Recorder Connie Kittrell called the roll call vote:

Vice Mayor Steve Camp	Yes
Councilman John D. Alexander	Yes
Councilman Steve Fann	Yes
Councilman Shawn Fennell	Yes
Councilman Craig Hayes	Yes
Councilwoman Lynda Love	Yes
Councilman Jimmy Overton	Yes

Motion passed with 7 ayes and 0 nays.

11. Ordinance #O2009-44 – First Reading

Councilman Overton presented this ordinance amending Gallatin Municipal Code, Chapter 5, Buildings and Building Regulation and Chapter 9, Fire Protection and Prevention.

Councilman Overton made motion to approve; Councilman Alexander seconded.

Mayor called for a roll call vote.

City Recorder Connie Kittrell called the roll call vote:

Vice Mayor Steve Camp	Yes
Councilman John D. Alexander	Yes
Councilman Steve Fann	Yes
Councilman Shawn Fennell	Yes
Councilman Craig Hayes	Yes
Councilwoman Lynda Love	Yes
Councilman Jimmy Overton	Yes

Motion passed with 7 ayes and 0 nays.

12. Ordinance #O2009-45 – First Reading

Councilman Alexander presented this ordinance appropriating and correcting Environmental Services revenue for FY 2021.

Councilman Alexander made motion to approve; Councilman Overton seconded.

Mayor called for a roll call vote.

City Recorder Connie Kittrell called the roll call vote:

Vice Mayor Steve Camp	Yes
Councilman John D. Alexander	Yes
Councilman Steve Fann	Yes
Councilman Shawn Fennell	Yes
Councilman Craig Hayes	Yes
Councilwoman Lynda Love	Yes
Councilman Jimmy Overton	Yes

Motion passed with 7 ayes and 0 nays.

13. Ordinance #O2009-46 – First Reading

Councilman Fann presented this ordinance appropriating \$5,042.45 for legal services.

Councilman Fann made motion to approve; Councilman Alexander seconded.

Mayor called for a roll call vote.

City Recorder Connie Kittrell called the roll call vote:

Vice Mayor Steve Camp	Yes
Councilman John D. Alexander	Yes
Councilman Steve Fann	Yes
Councilman Shawn Fennell	Yes
Councilman Craig Hayes	Yes
Councilwoman Lynda Love	Yes
Councilman Jimmy Overton	Yes

Motion passed with 7 ayes and 0 nays.

Other Business

Mayor opened other business.

- Councilman Alexander asked for Clearview Park be placed on next week's agenda for discussion.
- Human Resource Director Connie Flood announced the upcoming retirement of Public Utilities Director David Gregory in January 15, 2021. Ms. Flood provided information on the process for department head hiring.

Council discussed and agreed to follow the guidelines set out in Resolution #R1508-45.

- Mayor asked council if they wanted to continue electronic meetings until the end of October.

Councilman Overton made motion to approve; Councilman Hayes seconded.

Mayor called for a roll call vote.

City Recorder Connie Kittrell called the roll call vote:

Vice Mayor Steve Camp	Abstained
Councilman John D. Alexander	Yes
Councilman Steve Fann	Yes
Councilman Shawn Fennell	Yes
Councilman Craig Hayes	Yes
Councilwoman Lynda Love	Yes
Councilman Jimmy Overton	Yes

Motion passed with 6 ayes and 0 nays and 1 abstention.

- Mayor announced that the parameters around the state relief money have changed and the city has to demonstrate that the money is being used for COVID prevention.

Finance Director Rachel Nichols explained the changes with the state regulations and how the relief money can be used.

Council discussed.

- Councilman Alexander thanked Gallatin Police Department for how they handled a situation that occurred in front of his house.

With no one else wishing to speak Mayor closed other business.

Public Recognition on Non-Agenda Related Items

Mayor opened public recognition on non-agenda related items.

Communications Director Jeff Hentschel opened the lines for the participants to speak.

- Pascal Jouvence of 1335 Long Hollow Pike asked the city to investigate sign violations and remove the ones in question immediately.
- Special Projects Director Rosemary Bates thanked Mayor, Jeff Hentschel and Jazmin Grimm for honoring manufacturers who have added thousands of jobs to the community.
- Rene Saunders of 2092 Rodman Boulevard stated the funds for COVID-19 relief should be used to help the citizens and teachers.
- Mayor presented a Proclamation for Manufacturing.
- Mayor provided information about the CMAQ grant.

With no one else wishing to speak public recognition on non-agenda related items was closed.

Adjourn

Councilwoman Love made motion to adjourn; Councilman Fennell seconded.

Mayor adjourned the meeting at 7:26 P.M. without objection.

Mayor Paige Brown

City Recorder Connie Kittrell

ORDINANCE NO. 02009-41

AN ORDINANCE OF THE CITY OF GALLATIN, SUMNER COUNTY, TENNESSEE, REZONING PORTIONS OF TWO (2) LOTS AND PORTIONS OF TWO (2) PARCELS TOTALING APPROXIMATELY 10.02 +/- ACRES OF THE GREENSBORO VILLAGE PUD LESS RIGHT-OF-WAY OF GREENSBORO DRIVE AND GREENLEA BOULEVARD, FROM THE R6-HIGH DENSITY RESIDENTIAL DISTRICT TO THE MRO (PUD)-MULTIPLE RESIDENTIAL AND OFFICE (PLANNED UNIT DEVELOPMENT) DISTRICT, LOCATED EAST AND WEST OF GREENSBORO DRIVE; AUTHORIZING THE REVISION TO BE INDICATED ON THE OFFICIAL ZONING ATLAS; REPEALING CONFLICTING ORDINANCES; PROVIDING FOR SEVERABILITY, AND PROVIDING FOR AN EFFECTIVE DATE.

WHEREAS, the owner of the properties submitted a complete application to rezone 10.02 +/- acres of the Greensboro Planned Unit Development, located in the City of Gallatin, Tennessee; and

WHEREAS, the zoning map amendment conforms to the general plan of the area including the established Commercial Corridor Character Area and that the public necessity, convenience, and general welfare will be served by approving the proposed amendment; and

WHEREAS, the property proposed for rezoning has adequate public utilities, infrastructure, and private or municipal services necessary to serve the existing and proposed development and population permitted by the requested zoning or such necessary services and facilities will be provided upon development of the property; and

WHEREAS, the rezoning will be compatible with the surrounding environment and will protect the public health, safety, and welfare and will not be injurious to other property or improvements in the area in which the property is located; and

WHEREAS, the Gallatin Municipal-Regional Planning Commission reviewed and recommended approval of the proposed rezoning in GMRPC Resolution 2020-113; and

WHEREAS, a public hearing was held following public notice as prescribed by the Gallatin Zoning Ordinance and Tenn. Code Ann. § 13-7-203; and

WHEREAS, the City Council approved by majority vote of the members present the rezoning request of the described property; and

NOW, THEREFORE, BE IT ORDAINED BY THE CITY COUNCIL OF THE CITY OF GALLATIN, SUMNER COUNTY, TENNESSEE as follows:

Section 1. The City Council of the City of Gallatin does hereby rezone 10.02 +/- acres of the Greensboro Village PUD less rights of way of Greensboro Drive and Greenlea Drive, from R6-

High Density Residential district to MRO (PUD)–Multiple Residential and Office (Planned Unit Development) as described in Exhibit ‘A’ and depicted in Exhibit ‘B.’

Section 2. The City Council of the City of Gallatin does hereby approve, authorize and direct the revision of the City’s Official Zoning Atlas to show the classification for the area as hereby rezoned.

Section 3. All ordinances or parts of ordinances in conflict with the provisions of this ordinance are hereby repealed to the extent of such conflict.

Section 4. If any provision of this ordinance or the application thereof to any person or circumstance is held invalid, the invalidity shall not affect other provisions or applications of this ordinance which can be given without the invalid provision or application, and to this end the provisions of this ordinance are declared severable.

Section 5. This ordinance shall become effective immediately upon adoption.

PASSED FIRST READING: September 15, 2020.

PASSED SECOND READING:

MAYOR PAIGE BROWN

ATTEST:

CONNIE KITTRELL
CITY RECORDER

APPROVED AS TO FORM:

SUSAN HIGH-MACAULEY
CITY ATTORNEY

Exhibit A: Legal Descriptions
Exhibit B: Description of PMDP with conditions

EXHIBIT 'A'

Legal Descriptions

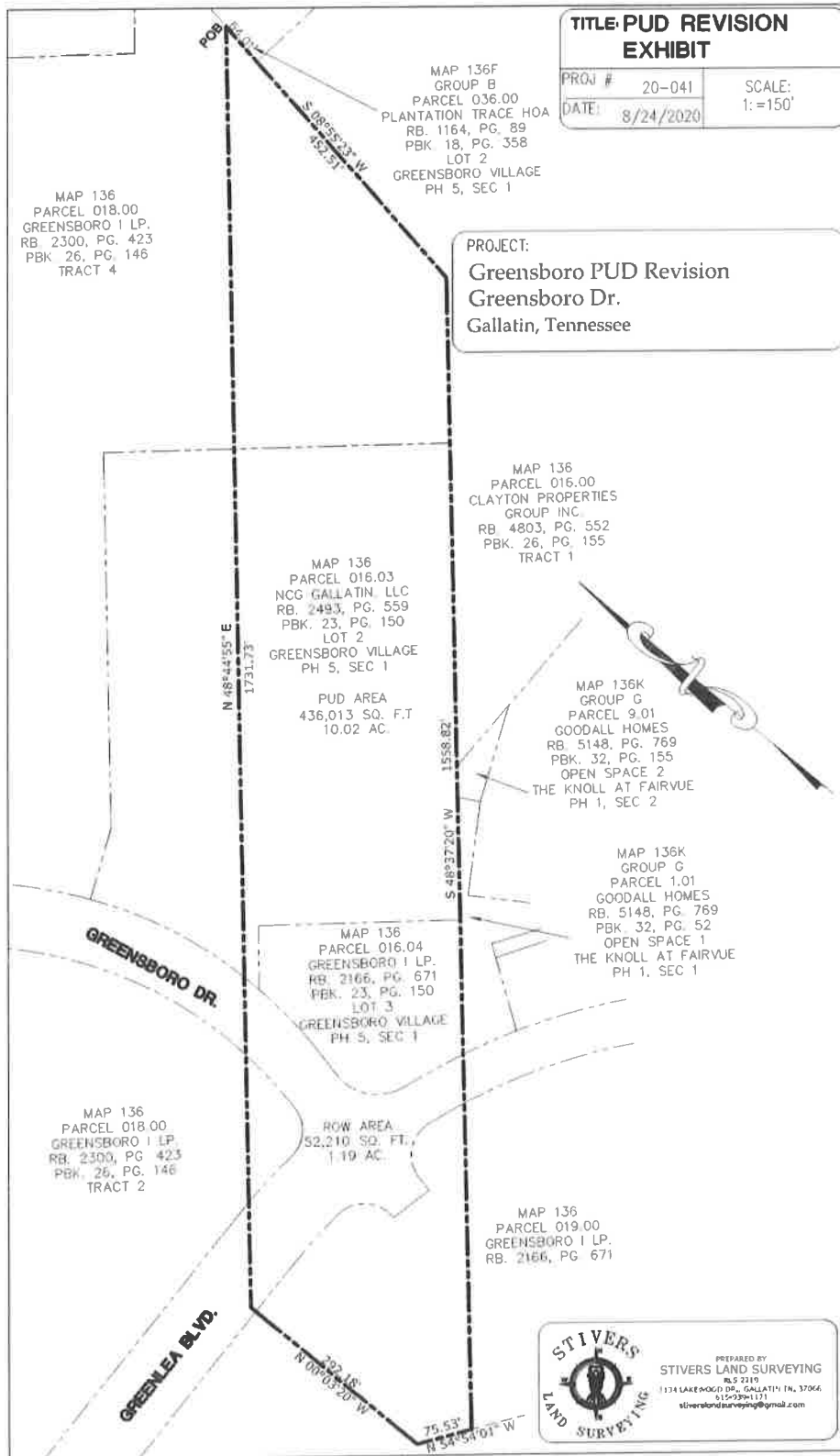
R6 TO MRO (PUD) REZONING, TOTALLING 10.02 +/- ACRES

A tract of land in the 3rd District, Sumner County, Tennessee. Tract being a portion of the Greensboro I LP. tract as recorded in Record Book 2300, Page 423, Register's Office, Sumner County, Tennessee (ROSC) also being tract 4 on Plat Book 26, Page 146, ROSC, the NCG Gallatin. LLP tract as recorded in Record Book 2493, Page 559, RODC., also being lot 2 Greensboro Village Phase 5, Section 1 on Plat book 23, Page 150, RODC, the Greensboro I LP tract as recorded in Record Book 2166, Page 671, ROSC and portions of Greenlea Boulevard and Greensboro Drive. Tract being bounded on the north the said Greensboro I LP tract, NCG Gallatin. LLP, on the north west and south by the Greensboro I PL tract, by open space 1 The Knoll Fairvue, Phase 1, Section 1, Plat Book 32, Page 52, ROSC, by open space 2 The knoll Fairvue, Phase 1, Section 1,, Plat Book 32, Page 155 and by tract 1 Plat Book 26, Page 155, ROSC. Tract being described as follows:

Point of Beginning being North 08°55'23"East 64.02' from the the southwestern Corner of lot 2, Plat Book 18, Page 358, Greensboro Village Phase 5, Section 1, ROSC; thence with the common line of said tract 1 and lot 2 South 08°55'23" West a distance of 452.51' to a point; thence with the common lines of said Greensboro I LP, Open Space 1, Open Space 2 and tract 1 South 48°37'20" West a distance of 1558.82' to a point; thence with a new line North 54°54'01" West a distance of 75.53' to a point; thence North 00°03'20" West a distance of 292.18" to a point; thence North 48°44'55" East 1731.73' to the point of beginning,

Having an area of 436,013 square feet, 10.02 acres. This area is less and except the Right of Way of Greensboro Drive and Green Lea Boulevard which is 52,210 square feet or 1.19 acres.

EXHIBIT 'B'



**CITY OF GALLATIN
COUNCIL COMMITTEE AGENDA**

September 8, 2020

DEPARTMENT: PLANNING DEPARTMENT

AGENDA #

SUBJECT:

Ordinance No. 02009-41 of the City of Gallatin, Sumner County, Tennessee, rezoning portions of two (2) lots and portions of two (2) parcels, totaling 10.02 +/- acres of the Greensboro Village PUD less right-of-way of Greensboro Drive and Greenlea Boulevard, from the R6–High Density Residential District to the MRO (PUD)–Multiple Residential and Office (Planned Unit Development) District.

SUMMARY:

An Ordinance of the City of Gallatin, Sumner County, Tennessee, rezoning portions of two (2) lots and portions of two (2) parcels, totaling 10.02 +/- acres of the Greensboro Village PUD less right-of-way of Greensboro Drive and Greenlea Boulevard, from the R6–High Density Residential District to the MRO (PUD)–Multiple Residential and Office (Planned Unit Development) District, located east and west of Greensboro Drive; authorizing the revision to the Official Zoning Atlas; repealing conflicting ordinances; providing for severability; and providing an effective date.

RECOMMENDATION:

On August 24, 2020, the Gallatin Municipal-Regional Planning Commission recommended approval of the rezoning in Resolution No. 2020-113 (File No. ZONE-2020-0017)

ATTACHMENT:

☐ Resolution
☒ Ordinance

☐ Correspondence
☐ Contract

☐ Bid Tabulation
☐ Other

Approved ☒
Rejected ☐
Deferred ☐

Notes:

ORDINANCE NO. 02009-42

AN ORDINANCE OF THE CITY OF GALLATIN, SUMNER COUNTY, TENNESSEE, APPROVING A PRELIMINARY MASTER DEVELOPMENT PLAN FOR THE NOBLE PARK TOWNHOMES ON TWO (2) PARCELS (TAX MAP 126L, GROUP C, PARCEL 026.00 & 027.00), TOTALING 2.65 +/- ACRES, LOCATED NORTH OF COLES FERRY ROAD AND WEST OF AIRPORT ROAD, AUTHORIZING THE REVISION TO BE INDICATED ON THE OFFICIAL ZONING ATLAS; REPEALING CONFLICTING ORDINANCES; PROVIDING FOR SEVERABILITY, AND PROVIDING FOR AN EFFECTIVE DATE.

WHEREAS, the applicant submitted a complete application for a Preliminary Master Development Plan on two (2) parcels totaling 2.65 +/- acres located north of Coles Ferry Road and west of Airport Road in Gallatin, Tennessee; and

WHEREAS, the property is currently zoned MRO-Multiple Residential and Office; and

WHEREAS, the Gallatin Municipal-Regional Planning Commission reviewed and recommended approval of the proposed Preliminary Master Development Plan in GMRPC Resolution No 2020-119; and

WHEREAS, a public hearing was held following public notice as prescribed by the Gallatin Zoning Ordinance and Tennessee Code Annotated, Section 13-7-203; and

NOW, THEREFORE, BE IT ORDAINED BY THE CITY COUNCIL OF THE CITY OF GALLATIN, SUMNER COUNTY, TENNESSEE as follows:

Section 1. The City Council of the City of Gallatin does hereby approve the Preliminary Master Development Plan for the Noble Park Townhomes on two (2) parcels totaling 2.65 +/- acres, zoned MRO-Multiple Residential and Office, as described in Exhibit 'A'.

Section 2. The City Council of the City of Gallatin does hereby approve, authorize and direct the revision of the City's Official Zoning Atlas to show the classification with preliminary master development plan for the property.

Section 3. All ordinances or parts of ordinances in conflict with the provisions of this ordinance are hereby repealed to the extent of such conflict.

Section 4. If any provision of this ordinance or the application thereof to any person or circumstance is held invalid, the invalidity shall not affect other provision or applications of this ordinance which can be given without the invalid provision or application, and to this end the provisions of this ordinance are declared severable.

Section 5. This Ordinance shall take effect upon final passage. the public welfare requiring such.

PASSED FIRST READING: September 15, 2020.

PASSED SECOND READING:

MAYOR PAIGE BROWN

ATTEST:

CONNIE KITTRELL
CITY RECORDER

APPROVED AS TO FORM:

SUSAN HIGH-MCAULEY
CITY ATTORNEY

EXHIBIT 'A'

The Preliminary Master Development Plan for the Noble Park Townhomes, consists of a 10 sheet plan prepared by Wold HFR Design of Brentwood, TN, dated July 9, 2020 with a revision date of August 31, 2020, with the following conditions:

1. Show fire hydrant locations on plan as required by the Fire Department.
2. Fee-simple lots shall be addressed through E-911 at the FMDP/platting stages.
3. The development shall meet all GDE underground policies. Any of GDE's existing facilities that are required to be relocated will be at the developer's expense.
4. Efforts by the developer to obtain excess property of the city adjacent to the site and adjacent to Airport Road to permit modification and additional expansion of the size of the property shall be considered as a minor change to the PMDP.
5. Retain existing mature hardwood trees (except Hackberry trees) within property bufferyards.
6. Submit detailed water and sanitary sewer plans and specifications to the Public Utilities Department for review and approval.

**CITY OF GALLATIN
COUNCIL COMMITTEE AGENDA**

SEPTEMBER 8, 2020

DEPARTMENT: PLANNING DEPARTMENT

AGENDA #

SUBJECT:

An Ordinance No. O2009-42 of the City of Gallatin, Sumner County, Tennessee, approving a Preliminary Master Development Plan for the Noble Park Townhomes on two (2) parcels totaling 2.65 +/- acres (Tax Map 126L, Group C, Parcel 026.00 & 027.00), zoned MRO-Multiple Residential and Office.

SUMMARY:

An Ordinance of the City of Gallatin, Sumner County, Tennessee, approving a Preliminary Master Development Plan for the Noble Park Townhomes, consisting of 36 attached townhomes on two (2) parcels totaling 2.65 +/- acres (Tax Map 126L, Group C, Parcel 026.00 & 027.00), zoned MRO-Multiple Residential and Office, located north of Coles Ferry Road and west of Airport Road; authorizing the revision to be indicated on the Official Zoning Atlas; repealing conflicting ordinances; providing for severability; and providing an effective date.

On August 24, 2020, the Gallatin Municipal-Regional Planning Commission recommended approval the Preliminary Master Development Plan in GMRPC Resolution No. 2020-119. (MDP-2020-0107).

RECOMMENDATION:

ATTACHMENT:

☐ Resolution
☒ Ordinance

☐ Correspondence
☐ Contract

☐ Bid Tabulation
☒ Other

Approved ☒
Rejected ☐
Deferred ☐

Notes:

AN ORDINANCE AMENDING GALLATIN MUNICIPAL CODE, CHAPTER 5, BUILDINGS AND BUILDING REGULATION AND CHAPTER 9, FIRE PROTECTION AND PREVENTION

BE IT ORDAINED BY THE CITY OF GALLATIN, TENNESSEE, that, pursuant to Tenn. Code Ann. § 6-54-501 and because Sumner County has taken responsibility for permitting and inspecting in the City Planning Region, the following sections of the Gallatin Municipal Code are hereby amended as follows:

(1) Chapter 5, Buildings and Building Regulations, Article V, Electrical Standards

- (a) *Sec 5-119, Permit required for doing electrical work* is amended by deleting the words “or its planning region”;

(2) Chapter 9, Fire Protection and Prevention, Article III, Standards

- (a) *Sec. 9-68. – Access to buildings by fire apparatus; fire lanes* is amended by the following:
 - (h)(1) delete the words “and its planning region”;

(3) Chapter 9, Fire Protection and Prevention, Article V, Blasting Regulation and Permitting

- (a) *Sec 9-126 – Permit requirements* is amended by deleting the words “or planning region”.
- (b) *Sec 9-130 – Blasting standards* is amended by deleting the words “or planning region”.

BE IT FURTHER ORDAINED BY THE CITY OF GALLATIN, TENNESSEE, that this Ordinance shall take effect immediately upon adoption, the public welfare requiring such.

PASSED FIRST READING: October 6, 2020.

PASSED SECOND READING:

MAYOR PAIGE BROWN

ATTEST:

APPROVED AS TO FORM:

CONNIE KITTRELL
CITY RECORDER

SUSAN HIGH-MCAULEY
CITY ATTORNEY

**CITY OF GALLATIN
COUNCIL COMMITTEE AGENDA**

SEPTEMBER 22, 2020

DEPARTMENT: **Building Codes**

AGENDA #

SUBJECT:

Sumner County has taken responsibility for building permitting and inspecting in the City Planning Region. The purpose of this ordinance is to amend the municipal code to remove references to building and fire code requirements within the planning region..

SUMMARY:

RECOMMENDATION:

ATTACHMENT:

☐ Resolution
☒ Ordinance

☐ Correspondence
☐ Contract

☐ Bid Tabulation
☐ Other

Approved x
Rejected
Deferred

Notes:

ORDINANCE APPROPRIATING AND CORRECTING
ENVIRONMENTAL SERVICES REVENUE FOR FY 2021

BE IT ORDAINED BY THE CITY OF GALLATIN, TENNESSEE, that the sum of \$40,000 is hereby appropriated to 125-34112, and;

BE IT FURTHER ORDAINED BY THE CITY OF GALLATIN, TENNESSEE, that this Ordinance shall take effect from and after its final passage, the public welfare requiring such.

PASSED FIRST READING: October 6, 2020.

PASSED SECOND READING:

MAYOR PAIGE BROWN

ATTEST:

CONNIE KITTRELL
CITY RECORDER

APPROVED AS TO FORM:

SUSAN HIGH-MCAULEY
CITY ATTORNEY

**CITY OF GALLATIN
COUNCIL COMMITTEE AGENDA**

09/22/2020

DEPARTMENT: **Finance**

AGENDA #

SUBJECT:

Ordinance appropriating Environmental Services revenue

SUMMARY:

Ordinance appropriating correct amount of projected revenue for Environmental Services for the 2021 fiscal year

RECOMMENDATION:

approval

ATTACHMENT:

☐	Resolution
☒	Ordinance

☐	Correspondence
☐	Contract

☐	Bid Tabulation
☐	Other

Approved	☒
Rejected	☐
Deferred	☐

Notes:

ORDINANCE APPROPRIATING \$5,042.45 FOR LEGAL SERVICES

BE IT ORDAINED BY THE CITY OF GALLATIN, TENNESSEE, that the sum of \$5,042.45 is hereby appropriated to 110-36900, Other Revenue, and to 11041620-252, City Attorney Legal Services for funds received on the Griffin easement; and,

BE IT FURTHER ORDAINED BY THE CITY OF GALLATIN, TENNESSEE, that this Ordinance shall take effect upon passage, the public welfare requiring such.

PASSED FIRST READING: October 6, 2020.

PASSED SECOND READING:

MAYOR PAIGE BROWN

ATTEST:

CONNIE KITTRELL
CITY RECORDER

APPROVED AS TO FORM:

SUSAN HIGH-MCAULEY
CITY ATTORNEY

**CITY OF GALLATIN
COUNCIL COMMITTEE AGENDA**

09/22/2020

DEPARTMENT: Finance

AGENDA #

SUBJECT:

Ordinance appropriating revenue received

SUMMARY:

Ordinance appropriating revenue received for legal services

RECOMMENDATION:

approval

ATTACHMENT:

☐ Resolution
☒ Ordinance

☐ Correspondence
☐ Contract

☐ Bid Tabulation
☐ Other

Approved
Rejected
Deferred

☒
☐
☐

Notes:

AN ORDINANCE OF THE CITY OF GALLATIN, SUMNER COUNTY, TENNESSEE, REZONING A 47.51 +/- ACRE PORTION OF THE GREENSBORO VILLAGE PUD (TAX MAP 136, PARCEL 004.04), FROM THE MRO (PUD)-MULTIPLE RESIDENTIAL AND OFFICE (PLANNED UNIT DEVELOPMENT) DISTRICT TO THE SP-SPECIFIC PLAN DISTRICT, AND APPROVING AN AMENDED PRELIMINARY MASTER DEVELOPMENT PLAN FOR GREENSBORO NORTH TRD (TRANSIT READY DEVELOPMENT), TOTALING 196.45 +/- ACRES, LOCATED EAST AND WEST OF GREENLEA BOULEVARD; AUTHORIZING THE REVISION TO BE INDICATED ON THE OFFICIAL ZONING ATLAS; REPEALING CONFLICTING ORDINANCES; PROVIDING FOR SEVERABILITY, AND PROVIDING FOR AN EFFECTIVE DATE.

WHEREAS, the owner of the property submitted a complete application to rezone a 47.51 +/- acre portion of a tract within the Greensboro Village Planned Unit Development and to amend the Preliminary Master Development Plan for Greensboro North TRD, located in the City of Gallatin, Tennessee; and

WHEREAS, the zoning map amendment conforms to the general plan of the area including the established GreenLea Business Center Character Area and that the public necessity, convenience, and general welfare will be served by approving the proposed amendment; and

WHEREAS, the amendment to the Planned Unit Development Preliminary Master Development Plan is consistent with the approved Greensboro Village Planned Unit Development Master Plan; and

WHEREAS, the property proposed for rezoning has adequate public utilities, infrastructure, and private or municipal services necessary to serve the existing and proposed development and population permitted by the requested zoning, or such necessary services and facilities will be provided upon development of the property; and

WHEREAS, the rezoning will be compatible with the surrounding environment and will protect the public health, safety, and welfare and will not be injurious to other property or improvements in the area in which the property is located; and

WHEREAS, the Gallatin Municipal-Regional Planning Commission reviewed and recommended approval of the proposed rezoning and the Amended Preliminary Master Development Plan in GMRPC Resolution No. 2020-131; and

WHEREAS, a public hearing was held following public notice as prescribed by the Gallatin Zoning Ordinance and Tenn. Code Ann. § 13-7-203; and

WHEREAS, the City Council approved by majority vote of the members present the rezoning request of the described property;

NOW, THEREFORE, BE IT ORDAINED BY THE CITY COUNCIL OF THE CITY OF GALLATIN, SUMNER COUNTY, TENNESSEE as follows:

Section 1. The City Council of the City of Gallatin does hereby rezone a 47.51 +/- acre portion of the Greensboro Village Planned Unit Development from the MRO (PUD)–Multiple Residential and Office (Planned Unit Development) District to the SP–Specific Plan District and approve an Amended Preliminary Master Development Plan for Greensboro North Transit Ready Development (TRD), as described in Exhibit ‘B’.

Section 2. The City Council of the City of Gallatin does hereby approve, authorize and direct the revision of the City’s Official Zoning Atlas to show the classification for the area as hereby rezoned.

Section 3. All ordinances or parts of ordinances in conflict with the provisions of this ordinance are hereby repealed to the extent of such conflict.

Section 4. If any provision of this ordinance or the application thereof to any person or circumstance is held invalid, the invalidity shall not affect other provisions or applications of this ordinance which can be given without the invalid provision or application, and to this end the provisions of this ordinance are declared severable.

Section 5. This ordinance shall become effective immediately upon adoption.

PASSED FIRST READING:

PASSED SECOND READING:

MAYOR PAIGE BROWN

ATTEST:

CONNIE KITTRELL
CITY RECORDER

APPROVED AS TO FORM:

SUSAN HIGH-MACAULEY
CITY ATTORNEY

Exhibit A: Legal Description

Exhibit B: Map

Exhibit C: Description of Amended PMDP

EXHIBIT 'A'

Legal Description

MRO (PUD) to SP, TALLING 47.51 ACRES

Greensboro North TRD SP Zoning
47.51 ACRES

A tract of land in the 4th District Sumner County, Tennessee. Tract being a portion of the Green and Little LP tract as recorded in 3486, Page 212, Register's Office, Sumner County, Tennessee (RODC) also in Plat Book 27, Page 107, RODC. Tract being bounded on the north, south and west by the Peyton Cemetery tract as recorded in Record Book 3486, Page 212, RODC also in Plat Book 27, Page 107, RODC, on the east by the Sumner County/Volunteer State tract as recorded in Deed Book, 282, Page 187, RODC, on the south by the remainder of the Green and Little LP tract and on the west by the eastern Right of Way (ROW) of Green Lea Boulevard. Tract being described as follows:

Point of Commencement being the southwestern corner of the said Sumner County/Volunteer State tract and being on the northern ROW of U.S. Route 31E; thence with the common line of the said Sumner County/Volunteer State tract North 31°45'38" West 405.56' to the point of beginning; thence with a new line thence South 48°44'23" West a distance of 1074.10' to a point; thence with the eastern ROW Green Lea Boulevard of North 58°07'11" West a distance of 250.02' to a point; thence with a curve turning to the right with an arc length of 784.29', with a radius of 767.00', with a chord bearing of North 28°49'34" West, with a chord length of 750.57' to a point; thence North 00°28'03" East a distance of 1693.28' to a point; thence South 89°31'57" East a distance of 78.00' to a point; thence North 05°02'29" East a distance of 250.80' to a point; thence North 02°47'18" West a distance of 304.81' to a point; thence with the common line of the said Sumner County/Volunteer State tract South 24°28'30" East a distance of 469.66' to a point; thence with the common line of the said Peyton Cemetery tract North 89°32'31" West a distance of 72.41' to a point; thence South 02°13'45" West a distance of 55.53' to a point; thence South 89°32'31" East a distance of 99.93' to a point; thence with the common line of the said Sumner County/Volunteer State tract South 24°28'30" East a distance of 909.10' to a point; thence South 34°26'57" East a distance of 1016.50' to a point; thence South 31°45'38" East a distance of 210.90' to the point of beginning,

Having an area of 2,069,684 square feet or 47.51 acres

EXHIBIT 'B'

Map

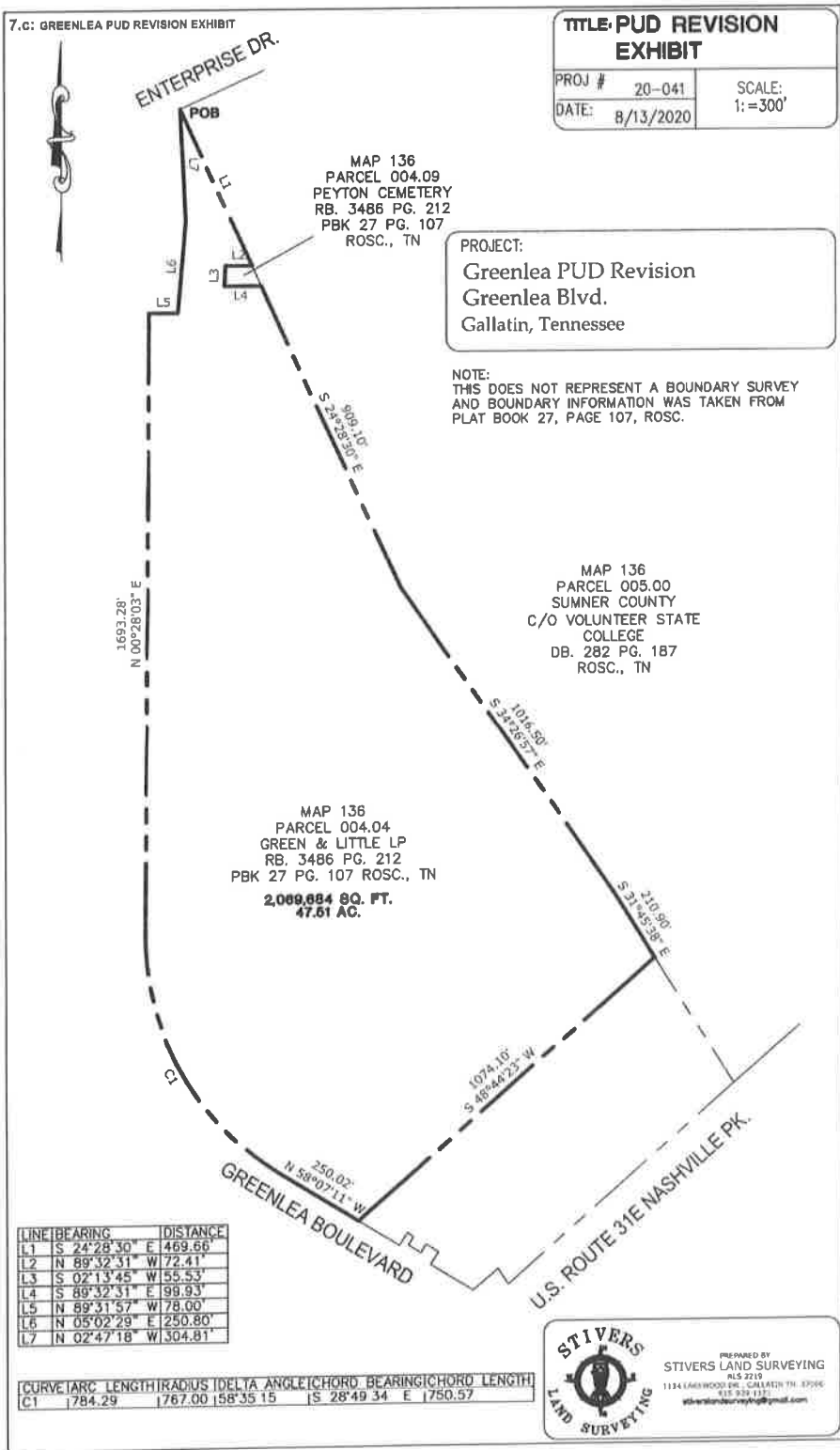


EXHIBIT 'C'

The Amended Preliminary Master Development Plan for Greensboro North TRD SP consists of a:

- Ninety-four (94) sheet plan booklet, prepared by Lose Design of Nashville, TN, dated August 10, 2012, with a revision date of September 17, 2020.

**CITY OF GALLATIN
COUNCIL COMMITTEE AGENDA**

October 13, 2020

DEPARTMENT: PLANNING DEPARTMENT

AGENDA #

SUBJECT:

Ordinance No. 02010-47 of the City of Gallatin, Sumner County, Tennessee, rezoning a 47.51 +/- acre portion of the Greensboro Village PUD from the MRO (PUD)–Multiple Residential and Office (Planned Unit Development) District to the SP–Specific Plan District and approving an amended PMDP for Greensboro North TRD (Transit Ready Development), totaling 196.45 +/- acres.

SUMMARY:

An Ordinance of the City of Gallatin, Sumner County, Tennessee, rezoning a 47.51 +/- acre portion of the Greensboro Village PUD from the MRO (PUD)–Multiple Residential and Office (Planned Unit Development) District to the SP–Specific Plan District and approving an amended PMDP for Greensboro North TRD (Transit Ready Development), totaling 196.45 +/- acres, located east and west of Greenlea Boulevard; authorizing the revision to the Official Zoning Atlas; repealing conflicting ordinances; providing for severability; and providing an effective date.

RECOMMENDATION:

On September 28, 2020, the Gallatin Municipal-Regional Planning Commission recommended approval of the rezoning and Amended PMDP in Resolution No. 2020-131 (File No. PUD-2020-0001)

ATTACHMENT:

☐ Resolution
☒ Ordinance

☐ Correspondence
☐ Contract

☐ Bid Tabulation
☒ Other

Approved ☒
Rejected ☐
Deferred ☐

Notes:

RESOLUTION NO. R2009-50

A RESOLUTION OF THE CITY OF GALLATIN, SUMNER COUNTY, TENNESSEE, ADOPTING A PLAN OF SERVICES FOR THE ANNEXATION OF 12.91 +/- ACRES OF HARTSVILLE PIKE (SR 25) PUBLIC RIGHT-OF-WAY, LOCATED ADJACENT TO THE CURRENT CITY LIMITS, FROM AIRPORT ROAD TO WEST OF HARTSVILLE LANE (PRIVATE STREET), AND PROVIDING FOR AN EFFECTIVE DATE.

WHEREAS, the City of Gallatin filed a petition for the annexation of 12.91 +/- acres of contiguous rights-of-way; and

WHEREAS, the area proposed for annexation to the City of Gallatin is substantially contiguous to the corporate limits to the City and within the City's Urban Growth Boundary; and

WHEREAS, Tennessee Code Annotated, § 6-51-102(b) requires that a Plan of Service be adopted by the governing body of a City prior to the passage of an annexation resolution; and,

WHEREAS, the Gallatin Municipal-Regional Planning Commission, pursuant to T.C.A. § 6-51-102(b)(4), § 6-51-107, §13-3-104, § 13-3-301, and § 13-4-103, reviewed and recommended approval of this Plan of Service, as contained in GMRPC Resolution No. 2020-112.

NOW, THEREFORE, BE IT RESOLVED BY THE CITY OF GALLATIN, TENNESSEE, AS FOLLOWS:

SECTION 1. Pursuant to the provisions of Section 6-51-102(b), Tennessee Code Annotated, there is hereby adopted, for the area described in Exhibit 'A', the Plan of Services described in Exhibit 'B.'

SECTION 2. This Resolution shall be effective upon adoption, the public welfare requiring such.

IT IS SO ORDERED.

PRESENT AND VOTING:

AYE:

NAY:

DATED:

MAYOR PAIGE BROWN

ATTEST:

CONNIE KITTRELL
CITY RECORDER

APPROVED AS TO FORM:

SUSAN HIGH-MCAULEY
CITY ATTORNEY

Exhibit 'A' – Legal Description of annexed territory
Exhibit 'B' – Plan of Services

EXHIBIT 'A'

Legal Description – 12.91 +/- acres of Hartsville Pike (SR 25) Right-of-way

BEING located in the 2nd Civil District of Sumner County, Tennessee, being located east of Airport Road and west of Hartsville Lane (private drive) and being a portion of State Route 25 (Hartsville Pike) right-of-way (TDOT Project #D.F.-025-01(5) and being more particularly described as follows:

BEGINNING at an existing ½" iron pin monument capped "TN 1571 KY 3050" in the northerly right-of-way of State Route 25 (Hartsville Pike) and easterly right-of-way of Airport Road, said monument also being a southwesterly corner common to Lot 1 of Alexander's Corner Final Plat recorded as Plat Book 26, Page 113, Register's Office of Sumner County, Tennessee;

Thence continuing along with the northerly right-of-way of State Route 25 (Hartsville Pike) and southerly line of Lot 1 of Alexander's Corner Final Plat, S 87°09'58" E a distance of 54.22' to a point, said point being the TRUE POINT OF BEGINNING

Thence continuing along with the northerly right-of-way of State Route 25 (Hartsville Pike) the following six calls: S 87°09'58" E a distance of 724.20' to a point;

Thence N 02°50'02" E a distance of 5.00' to a point;
Thence S 87°09'58" E a distance of 142.10' to a point;
Thence S 02°50'02" W a distance of 5.00' to a point;
Thence S 87°09'58" E a distance of 2990.00' to a point;

Thence with a curve turning to the right with an arc length of 814.31', with a radius of 11519.16', with a chord bearing of S 85°08'28" E, with a chord length of 814.14', to an existing concrete right-of-way marker;

Thence leaving said northerly right-of-way of State Route 25 (Hartsville Pike) and continuing along with a new severance line across the right-of-way of State Route 25 (Hartsville Pike), S 06°53'03" W a distance of 120.00' to an existing concrete right-of-way marker, said monument being the southerly right-of-way of State Route 25 (Hartsville Pike);

Thence continuing along with the southerly right-of-way of State Route 25 (Hartsville Pike) with the following two calls: with a curve turning to the left with an arc length of 805.83', with a radius of 11399.16', with a chord bearing of N 85°08'28" W, with a chord length of 805.66', to an existing concrete right-of-way marker;

Thence N 87°09'58" W a distance of 3885.87' to a point, said point being the northwesterly corner common to Lot 1 of Final Subdivision Plan Rolling Acres recorded as Plat Book 9, Page 178, Register's Office of Sumner County, Tennessee and northeasterly corner of Lot 1 of H.A.T.S. Subdivision recorded as Plat Book 11, Page 5, Register's Office of Sumner County, Tennessee;

Thence leaving said southerly right-of-way of State Route 25 (Hartsville Pike) and continuing along with a new severance line across the right-of-way of State Route 25 (Hartsville Pike), N

16°40'33" E a distance of 123.59' to a point, which is the point of beginning, having an area of 562,449 square feet, 12.91 acres more or less.

This description was prepared by City of Gallatin Engineering Division, certified by Brian M. Reifschneider RLS #2487, and dated July 15, 2020.

EXHIBIT 'B'

PLAN OF SERVICE

**FOR THE ANNEXATION OF 12.91 +/- ACRES OF HARTSVILLE PIKE (SR 25) PUBLIC RIGHT-OF-WAY, LOCATED ADJACENT TO THE CURRENT CITY LIMITS, FROM AIRPORT ROAD TO A SPOT WEST OF HARTSVILLE LANE (PRIVATE).
(ANNX-2020-0014),
pursuant to Tenn. Code Annotated § 6-51-102(b)**

A. Water

Central water service and adequate water service is located within and in close proximity to the right-of-way provided by Gallatin Public Utilities. No water line extension is required to serve the right-of-way. Upon development of the adjacent vacant properties, detailed water plans and specifications shall be submitted for review and approval by the developer.

B. Sanitary Sewer

Sanitary sewer is currently not available in the proposed annexation area, although there are existing sewer lines in the area of the Airport Road/Hartsville Pike intersection. Sanitary sewer can be made available to accommodate the development of adjacent properties within the city through a developer-funded extension of infrastructure to the site. Upon development of the adjacent vacant properties, detailed water and sanitary sewer plans and specifications shall be submitted for review and approval by the developer. Sanitary sewer service is not required to annex the right-of-way.

C. Street Construction and Maintenance

The public right-of-way is maintained by the Tennessee Department of Transportation and will continue to be maintained by TDOT upon annexation.

D. Solid Waste and Refuse Collection

Other than litter pick-up, no solid waste collection is required with this annexation.

E. Planning and Zoning Services

Rights-of-way are not assigned with a land use or zoning designation. However, the Planning Department and Engineering Division reviews and regulates driveway connection, design and permits on roadways throughout the city as part of the land development review process. This review is conducted for all development occurring on adjacent properties. Upon annexation, the city will continue to provide these services.

F. Building Inspections and Code Enforcement Services

No building code review or inspections services will be required except for potential structural elements permitted by franchised utilities in the rights-of-way. Upon annexation, the city will continue to provide these services.

G. Fire Protection

The Gallatin Fire Department will provide fire protection and emergency response within the right-of-way after the effective date of the annexation.

The Fire Department indicated that this annexation will place additional strain on Fire Station #1 and the system altogether. Due to the distance of this right-of-way from the primary and secondary response fire stations, as well as the extended emergency apparatus travel and response times required for on scene arrival, the Fire Department recommends that an additional fire station with the proper number of assigned firefighters and necessary equipment be provided in the eastern side of town.

The Fire Department recommended that planning for Fire Station #6 be initiated. The station may be located on property owned by the City at Commerce Drive (112//016.00), is located between 1.3 and 2.2 miles from the right-of-way with an average response time of five (5) minutes. The City will continue the process of planning for the construction of the fire station to serve the area.

H. Police Protection

After the effective date of the annexation, police patrol, response to calls, and other routine police services will be provided by the Gallatin Police Department within the right-of-way. The Police Department indicated that additional police officers and departmental vehicles are not needed to provide service to this area.

I. Animal Control

The Police Department provides animal control services and enforces the City's animal control ordinances. After the effective date of the annexation, these services will be available in the annexation area.

J. Recreational Facilities and Programs

No recreation facility impacts are associated with this annexation.

K. Street Lighting and Electric Service

GDE indicated that there are no GDE facilities in the proposed annexation area and that street lights will not be provided until adjacent properties are annexed as well. Electric service can be made available to accommodate the development of adjacent properties within the city through a developer-funded extension of infrastructure to the site. At least two adjacent properties are currently located in the City and another property is pending annexation. Street lighting along the right-of-way and adjacent to these parcels can be installed upon development of these properties.

L. Gas

The Gallatin Public Utilities Department provides natural gas services to residential, business, and industrial customers in the City of Gallatin and outside the City's corporate limits. While there are existing gas lines in the area of the proposed annexation, natural gas services are not needed to serve the right-of-way. Upon extension of gas lines by Gallatin Public Utilities, the City will oversee and monitor such lines.

M. School System

The City provided written notice to the Sumner County School System of the proposed annexation and proposed plan of development prior to the public hearing on the annexation resolution as required by Tenn. Code Annotated, Section 6-51-102(b)(2).

**CITY OF GALLATIN
COUNCIL COMMITTEE AGENDA**

SEPTEMBER 8, 2020

DEPARTMENT: PLANNING DEPARTMENT

AGENDA #

SUBJECT:

A Resolution No. R2009-50 of the City of Gallatin, Sumner County, Tennessee, to adopt a Plan of Services upon the annexation of 12.91 +/- acres of Hartsville Pike (SR 25) public right-of-way, located adjacent to the current city limits, from Airport Road to west of Hartsville Lane (private street).

SUMMARY:

A Resolution of the City of Gallatin, Sumner County, Tennessee, adopting a Plan of Services upon the annexation of 12.91 +/- acres of Hartsville Pike (SR 25) public right-of-way, located adjacent to the current city limits, from Airport Road to west of Hartsville Lane (private street).; and providing an effective date.

RECOMMENDATION:

On August 24, 2020, the Gallatin Municipal-Regional Planning Commission recommended approval of the annexation in GMRPC Resolution No. 2020-112. (ANNX-2020-0014)

ATTACHMENT:

☒ Resolution
☐ Ordinance

☐ Correspondence
☐ Contract

☐ Bid Tabulation
☒ Other

Approved ☒
Rejected ☐
Deferred ☐

Notes:

RESOLUTION NO. R2009-51

A RESOLUTION OF THE CITY OF GALLATIN, SUMNER COUNTY, TENNESSEE, ANNEXING 12.91 +/- ACRES OF HARTSVILLE PIKE (SR 25) RIGHT-OF-WAY, LOCATED ADJACENT TO THE CURRENT CITY LIMITS, FROM AIRPORT ROAD TO WEST OF HARTSVILLE LANE (PRIVATE); AUTHORIZING THE ANNEXED RIGHT-OF-WAY TO BE INDICATED ON THE OFFICIAL ZONING ATLAS; AUTHORIZING ASSIGNMENT OF ANNEXED AREA TO A COUNCIL DISTRICT; REPEALING CONFLICTING ORDINANCES; PROVIDING FOR SEVERABILITY, AND PROVIDING FOR AN EFFECTIVE DATE.

WHEREAS, the City of Gallatin submitted a petition to annex 12.91 +/- acres of state-maintained public right-of-way located adjacent to and substantially contiguous to the City of Gallatin, Tennessee city limits and located in the City of Gallatin Urban Growth Boundary; and

WHEREAS, a public hearing was held following public notice as prescribed by Tenn. Code Ann. § 6-51-102; and

WHEREAS, the City of Gallatin deems it reasonable and mutually beneficial to annex the territory described herein; and

WHEREAS, the Gallatin Municipal-Regional Planning Commission has by a majority vote recommended approval of the proposed annexation and Plan of Service to the affected area; and

WHEREAS, the City Council of the City of Gallatin has approved a Plan of Service for the annexation area as described in Resolution No. R2009-50.

NOW, THEREFORE, BE IT RESOLVED BY THE CITY COUNCIL OF THE CITY OF GALLATIN, SUMNER COUNTY, TENNESSEE as follows:

Section 1. The City Council of the City of Gallatin does hereby annex the following right-of-way as described in Exhibit 'A' and indicated on the map in Exhibit 'B';

Section 2. The City Council of the City of Gallatin does hereby approve, authorize and direct the revision of the City's boundaries and the Official Zoning Atlas to show the classification for the area as hereby being annexed into the City as shown on Exhibit 'A' and Exhibit 'B' attached hereto.

Section 3. The territory described in Exhibit 'A' and depicted in Exhibit 'B' shall become part of City Council District 1.

Section 4. All ordinances or resolutions or parts of ordinances or resolutions in conflict with the provisions of this resolution are hereby repealed to the extent of such conflict.

Section 5. If any provision of this resolution or the application thereof to any person or circumstance is held invalid, the invalidity shall not affect other provisions or applications of the resolution which can be given effect without the invalid provision or application, and to this end the provisions of this ordinance are declared severable.

Section 6. This resolution shall take effect after final passage, the public welfare requiring such, per Tenn. Code Ann. § 6-51-104.

IT IS SO ORDERED.

PRESENT AND VOTING.

AYE:

NAY:

DATED:

MAYOR PAIGE BROWN

ATTEST:

CONNIE KITTRELL
CITY RECORDER

APPROVED AS TO FORM:

SUSAN HIGH-MCAULEY
CITY ATTORNEY

Exhibit 'A' – Legal Description of annexation territory
Exhibit 'B' – Map of the annexation territory

EXHIBIT 'A'

Legal Description – 12.91 +/- acres of Hartsville Pike (SR 25) Right-of-way

BEING located in the 2nd Civil District of Sumner County, Tennessee, being located east of Airport Road and west of Hartsville Lane (private drive) and being a portion of State Route 25 (Hartsville Pike) right-of-way (TDOT Project #D.F.-025-01(5) and being more particularly described as follows:

BEGINNING at an existing ½" iron pin monument capped "TN 1571 KY 3050" in the northerly right-of-way of State Route 25 (Hartsville Pike) and easterly right-of-way of Airport Road, said monument also being a southwesterly corner common to Lot 1 of Alexander's Corner Final Plat recorded as Plat Book 26, Page 113, Register's Office of Sumner County, Tennessee;

Thence continuing along with the northerly right-of-way of State Route 25 (Hartsville Pike) and southerly line of Lot 1 of Alexander's Corner Final Plat, S 87°09'58" E a distance of 54.22' to a point, said point being the TRUE POINT OF BEGINNING

Thence continuing along with the northerly right-of-way of State Route 25 (Hartsville Pike) the following six calls: S 87°09'58" E a distance of 724.20' to a point;

Thence N 02°50'02" E a distance of 5.00' to a point;

Thence S 87°09'58" E a distance of 142.10' to a point;

Thence S 02°50'02" W a distance of 5.00' to a point;

Thence S 87°09'58" E a distance of 2990.00' to a point;

Thence with a curve turning to the right with an arc length of 814.31', with a radius of 11519.16', with a chord bearing of S 85°08'28" E, with a chord length of 814.14', to an existing concrete right-of-way marker;

Thence leaving said northerly right-of-way of State Route 25 (Hartsville Pike) and continuing along with a new severance line across the right-of-way of State Route 25 (Hartsville Pike), S 06°53'03" W a distance of 120.00' to an existing concrete right-of-way marker, said monument being the southerly right-of-way of State Route 25 (Hartsville Pike);

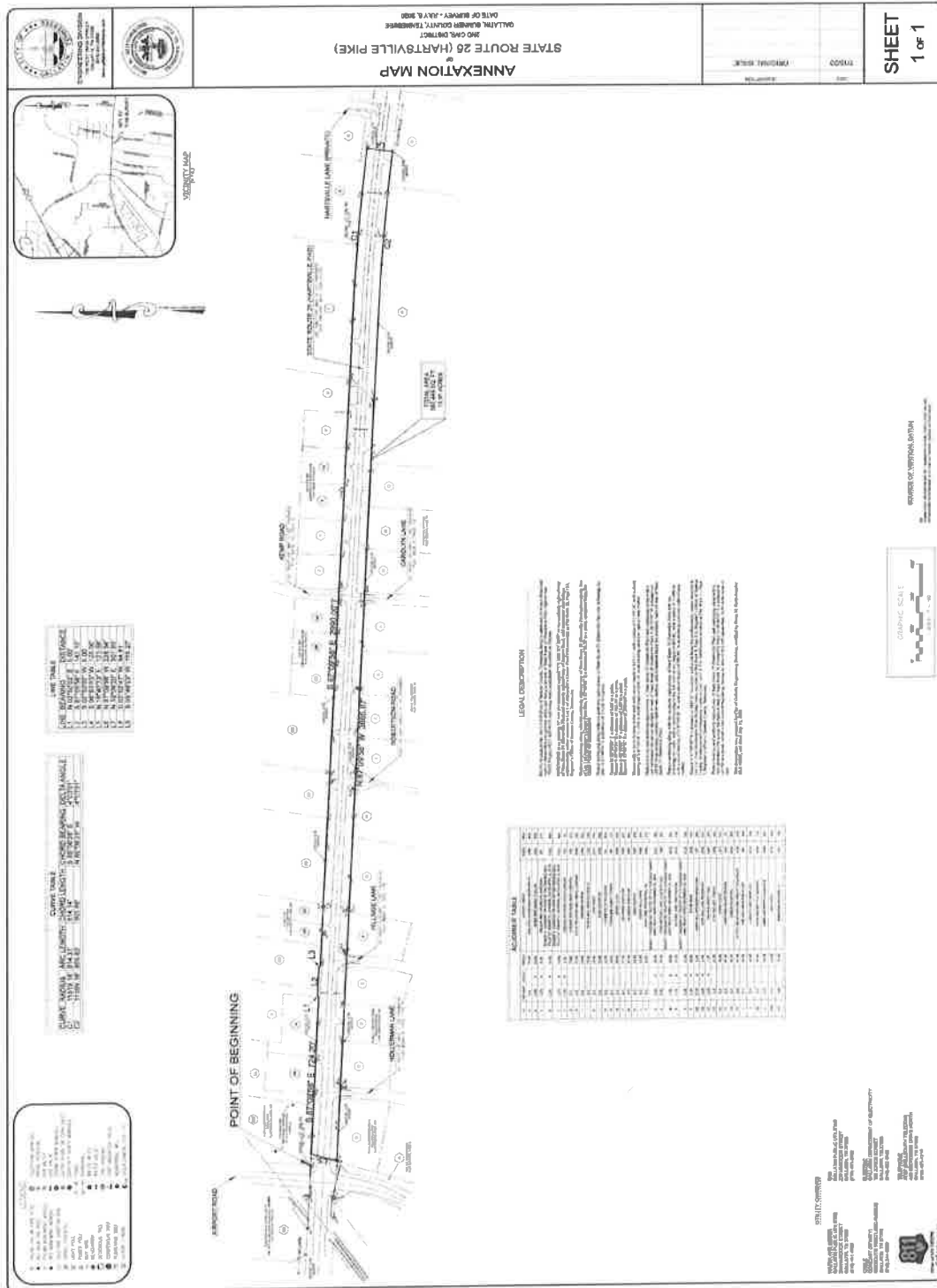
Thence continuing along with the southerly right-of-way of State Route 25 (Hartsville Pike) with the following two calls: with a curve turning to the left with an arc length of 805.83', with a radius of 11399.16', with a chord bearing of N 85°08'28" W, with a chord length of 805.66', to an existing concrete right-of-way marker;

Thence N 87°09'58" W a distance of 3885.87' to a point, said point being the northwesterly corner common to Lot 1 of Final Subdivision Plan Rolling Acres recorded as Plat Book 9, Page 178, Register's Office of Sumner County, Tennessee and northeasterly corner of Lot 1 of H.A.T.S. Subdivision recorded as Plat Book 11, Page 5, Register's Office of Sumner County, Tennessee;

Thence leaving said southerly right-of-way of State Route 25 (Hartsville Pike) and continuing along with a new severance line across the right-of-way of State Route 25 (Hartsville Pike), N 16°40'33" E a distance of 123.59' to a point, which is the point of beginning, having an area of 562,449 square feet, 12.91 acres more or less.

This description was prepared by City of Gallatin Engineering Division, certified by Brian M. Reifschneider RLS #2487, and dated July 15, 2020.

EXHIBIT 'B'



**CITY OF GALLATIN
COUNCIL COMMITTEE AGENDA**

SEPTEMBER 8, 2020

DEPARTMENT: PLANNING DEPARTMENT

AGENDA #

SUBJECT:

A Resolution No. R2009-51 of the City of Gallatin, Sumner County, Tennessee, annexing 12.91 +/- acres of Hartsville Pike (SR 25) public right-of-way, located adjacent to the current city limits, from Airport Road to west of Hartsville Lane (private street).

SUMMARY:

A Resolution of the City of Gallatin, Sumner County, Tennessee, annexing 12.91 +/- acres of Hartsville Pike (SR 25) public right-of-way into the City of Gallatin; authorizing the annexed property to be indicated on the Official Zoning Atlas; assigning the annexed area to a Council District; repealing conflicting ordinances; providing for severability; and providing an effective date.

RECOMMENDATION:

On August 24, 2020, the Gallatin Municipal-Regional Planning Commission recommended approval of the annexation in GMRPC Resolution No. 2020-112. (ANNX-2020-0014)

ATTACHMENT:

☒ Resolution
☐ Ordinance

☐ Correspondence
☐ Contract

☐ Bid Tabulation
☒ Other

Approved ☒
Rejected ☐
Deferred ☐

Notes:

INITIAL RESOLUTION AUTHORIZING THE ISSUANCE OF NOT TO EXCEED
\$17,500,000 OF GENERAL OBLIGATION BONDS OF THE CITY OF GALLATIN,
TENNESSEE

The City Council of the City of Gallatin, Tennessee (the "Municipality") hereby resolves to issue bonds of the Municipality to finance (i) capital costs related to the acquisition, improvement and equipping of public works facilities, including without limitation: (A) streets, roads and related transportation facilities; (B) drainage and stormwater facilities; (C) fire stations and public safety training facilities; (D) golf course, parks, recreational and community facilities; (E) City Hall; and (F) downtown parking facilities (collectively, the "Projects"); and (ii) bond issuance costs. The aggregate principal amount of the bonds shall not exceed \$17,500,000, and the aggregate interest rate on the bonds shall not exceed the maximum rate permitted by applicable law. The bonds shall be general obligations of the Municipality, payable from unlimited ad valorem taxes to be levied on all taxable property within the corporate limits of the Municipality.

The City Council further resolves to direct the City Recorder of the Municipality to publish the foregoing initial resolution in a newspaper having a general circulation in the Municipality followed by the following statutory notice:

NOTICE

The foregoing resolution has been adopted. Unless within twenty (20) days from the date of publication hereof a petition signed by at least ten percent (10%) of the registered voters of the Municipality shall have been filed with the City Recorder of the Municipality protesting the issuance of the bonds, such bonds may be issued as proposed.

Connie Kittrell, City Recorder

The City Council further resolves that this resolution shall take effect from and after its final passage, the public welfare requiring such.

IT IS SO ORDERED.

PRESENT AND VOTING:

AYE:

NAY:

DATED:

MAYOR PAIGE BROWN

ATTEST:

CONNIE KITTRELL
CITY RECORDER

APPROVED AS TO FORM:

SUSAN HIGH-MCAULEY
CITY ATTORNEY

STATE OF TENNESSEE)

COUNTY OF SUMNER)

I, Connie Kittrell, hereby certify that I am the duly qualified and acting City Recorder of the City of Gallatin, Tennessee (the "Municipality") and, as such official, I further certify as follows: (1) that attached hereto is a copy of a resolution excerpted from the minutes of the meeting of the City Council of the Municipality held on October 6, 2020; (2) that I have compared said copy with the original minute record of said meeting in my official custody; (3) that said copy is a true, correct and complete excerpt from said original record insofar as said original record relates to, among other matters, the issuance of general obligation bonds in a par amount not to exceed \$17,500,000; (4) that the actions by the City Council at said meeting were promptly and duly recorded by me in a book kept for such purpose; and (5) that a quorum of the members of the City Council was present and acting throughout said meeting.

WITNESS my official signature and seal of the City of Gallatin, Tennessee on this the ____ day of _____, 2020.

City Recorder

(SEAL)

**CITY OF GALLATIN
COUNCIL COMMITTEE AGENDA**

10/13/2020

DEPARTMENT: **Finance**

AGENDA #

SUBJECT:

Resolutions approving 2020 General Obligation bond issue

SUMMARY:

Continued discussion of resolutions approving 2020 General Obligation bond issue for various city-wide projects

RECOMMENDATION:

approval

ATTACHMENT:



**Resolution
Ordinance**

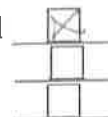


**Correspondence
Contract**



**Bid Tabulation
Other**

Approved
Rejected
Deferred



Notes:

RESOLUTION NO. R2009-54

**A RESOLUTION AUTHORIZING THE ISSUANCE, SALE AND PAYMENT OF
GENERAL OBLIGATION BONDS OF THE CITY OF GALLATIN, TENNESSEE
AN AGGREGATE PRINCIPAL AMOUNT OF NOT TO EXCEED \$17,500,000;
AND PROVIDING FOR THE LEVY OF TAXES FOR THE PAYMENT OF DEBT
SERVICE ON THE BONDS**

WHEREAS, 9-21-101, et seq., Tennessee Code Annotated (the “Act”) authorizes the City of Gallatin, Tennessee (the “Municipality”), by resolution of the City Council (the “City Council” or “Governing Body”), to issue and sell bonds to finance public works projects (as defined by the Act); and

WHEREAS, the City Council of the Municipality hereby determines that it is necessary and advisable to issue general obligation bonds, in one or more series, for the purpose of financing (i) capital costs related to the acquisition, improvement and equipping of public works facilities, including without limitation: (A) streets, roads and related transportation facilities; (B) drainage and stormwater facilities; (C) fire stations and public safety training facilities; (D) golf course, parks, recreational and community facilities; (E) City Hall; and (F) downtown parking facilities (collectively, the “Projects”); and (ii) bond issuance costs; and

WHEREAS, the City Council of the Municipality did adopt on the date hereof an initial resolution (the “Initial Resolution”) authorizing the issuance of not to exceed \$17,500,000 for the purposes described above; and

WHEREAS, the Initial Resolution, together with the notice required by the Act, will be published as required by law; and

WHEREAS, it is the intention of the City Council of the Municipality to adopt this resolution for the purpose of authorizing not to exceed \$17,500,000 in aggregate principal amount of bonds for the above-described purposes, providing for the issuance, sale and payment of said bonds, establishing the terms thereof, and the disposition of proceeds therefrom, and providing for the levy of a tax for the payment of principal thereof, premium, if any, and interest thereon.

NOW, THEREFORE, BE IT RESOLVED by the City Council of the City of Gallatin, Tennessee, as follows:

Section 1. Authority. The bonds authorized by this resolution are issued pursuant to the Act and other applicable provisions of law.

Section 2. Definitions. In addition to the terms defined in the preamble above, the following terms shall have the following meanings in this resolution unless the text expressly or by necessary implication requires otherwise:

(a) “Bonds” means the not to exceed \$17,500,000 General Obligation Bonds of the Municipality, to be dated their date of issuance, and having such series designation or such other dated date as shall be determined by the Mayor pursuant to Section 8 hereof.

(b) “Book-Entry Form” or “Book-Entry System” means a form or system, as applicable, under which physical bond certificates in fully registered form are issued to a Depository, or to its nominee as Registered Owner, with the certificate of bonds being held by and “immobilized” in the custody of such

Depository, and under which records maintained by persons, other than the Municipality or the Registration Agent, constitute the written record that identifies, and records the transfer of, the beneficial “book-entry” interests in those bonds.

(c) “Code” means the Internal Revenue Code of 1986, as amended, and all regulations promulgated thereunder.

(d) “Depository” means any securities depository that is a clearing agency under federal laws operating and maintaining, with its participants or otherwise, a Book-Entry System, including, but not limited to, DTC.

(e) “DTC” means the Depository Trust Company, a limited purpose company organized under the laws of the State of New York, and its successors and assigns.

(f) “DTC Participant(s)” means securities brokers and dealers, banks, trust companies and clearing corporations that have access to the DTC System.

(g) “Mayor” shall mean the Mayor of the Municipality.

(h) “Municipal Advisor” for the Bonds authorized herein means Oakdale Municipal Advisors, LLC, Portland, Tennessee.

(i) “Projects” means capital costs related to the acquisition, improvement and equipping of public works facilities, including without limitation: (A) streets, roads and related transportation facilities; (B) drainage and stormwater facilities; (C) fire stations and public safety training facilities; (D) golf course, parks, recreational and community facilities; (E) City Hall; and (F) downtown parking facilities.

(j) “Registration Agent” means the registration and paying agent appointed by the Mayor pursuant to the terms hereof, or any successor designated by the Governing Body.

Section 3. Findings of the Governing Body: Compliance with Debt Management Policy.

(a) In conformance with the directive of the State Funding Board of the State of Tennessee, the Municipality has heretofore adopted its Debt Management Policy. The Governing Body hereby finds that the issuance and sale of the Bonds, as proposed herein, is consistent with the Municipality’s Debt Management Policy.

(b) The estimated interest expense and costs of issuance of the Bonds have been made available to the Governing Body.

Section 4. Authorization and Terms of the Bonds.

(a) For the purpose of providing funds to finance, in whole or in part, the cost of the Projects and costs incident thereto; reimbursement to the appropriate fund of the Municipality for prior expenditures for the foregoing costs, if applicable; and payment of costs incident to the issuance and sale of the Bonds, there is hereby authorized to be issued bonds of the Municipality in the aggregate principal amount of not to exceed \$17,500,000. The Bonds shall be issued in one or more series, in fully registered, book-entry form (except as otherwise set forth herein), without coupons, and subject to the adjustments permitted hereunder, shall be known as “General Obligation Bonds”, shall be dated their date of issuance, and shall have such series designation or such other dated date as shall be determined by the Mayor pursuant to the terms hereof. The Bonds shall bear interest at a rate or rates not to exceed the maximum rate permitted by

applicable Tennessee law at the time of issuance of the Bonds, or any series thereof, payable (subject to the adjustments permitted hereunder) semi-annually on January 1 and July 1 in each year, commencing July 1, 2021. The Bonds shall be issued initially in \$5,000 denominations or integral multiples thereof, as shall be requested by the original purchaser thereof. Subject to the adjustments permitted pursuant to the terms hereof, the Bonds shall mature serially or be subject to mandatory redemption and shall be payable on January 1 of each year, subject to prior optional redemption as hereinafter provided, in the years 2022 through 2041; provided, however, such amortization may be adjusted in accordance with the terms hereof.

(b) Subject to the adjustments permitted under Section 8 hereof, the Bonds shall be subject to redemption prior to maturity at the option of the Municipality on January 1, 2031 and thereafter, as a whole or in part at any time at the redemption price of par plus accrued interest to the redemption date.

If less than all the Bonds shall be called for redemption, the maturities to be redeemed shall be selected by the Governing Body in its discretion. If less than all of the Bonds within a single maturity shall be called for redemption, the interests within the maturity to be redeemed shall be selected as follows:

(i) if the Bonds are being held under a Book-Entry System by DTC, or a successor Depository, the Bonds to be redeemed shall be determined by DTC, or such successor Depository, by lot or such other manner as DTC, or such successor Depository, shall determine; or

(ii) if the Bonds are not being held under a Book-Entry System by DTC, or a successor Depository, the Bonds within the maturity to be redeemed shall be selected by the Registration Agent by lot or such other random manner as the Registration Agent in its discretion shall determine.

(c) Pursuant to the terms hereof, the Mayor is authorized to sell the Bonds, or any maturities thereof, as term bonds ("Term Bonds") with mandatory redemption requirements corresponding to the maturities set forth herein or as determined by the Mayor. In the event any or all the Bonds are sold as Term Bonds, the Municipality shall redeem Term Bonds on redemption dates corresponding to the maturity dates set forth herein, in aggregate principal amounts equal to the maturity amounts established pursuant to the terms hereof for each redemption date, as such maturity amounts may be adjusted pursuant to the terms hereof, at a price of par plus accrued interest thereon to the date of redemption. The Term Bonds to be redeemed within a single maturity shall be selected as follows:

If less than all of the Bonds within a single maturity shall be called for redemption, the interests within the maturity to be redeemed shall be selected as follows:

(i) if the Bonds are being held under a Book-Entry System by DTC, or a successor Depository, the Bonds to be redeemed shall be determined by DTC, or such successor Depository, by lot or such other manner as DTC, or such successor Depository, shall determine; or

(ii) if the Bonds are not being held under a Book-Entry System by DTC, or a successor Depository, the Bonds within the maturity to be redeemed shall be selected by the Registration Agent by lot or such other random manner as the Registration Agent in its discretion shall determine.

At its option, to be exercised on or before the forty-fifth (45th) day next preceding any such mandatory redemption date, the Municipality may (i) deliver to the Registration Agent for cancellation Bonds to be redeemed, in any aggregate principal amount desired, and/or (ii) receive a credit in respect of its redemption obligation under this mandatory redemption provision for any Bonds of the maturity to be redeemed which prior to said date have been purchased or redeemed (otherwise than through the operation

of this mandatory sinking fund redemption provision) and cancelled by the Registration Agent and not theretofore applied as a credit against any redemption obligation under this mandatory sinking fund provision. Each Bond so delivered or previously purchased or redeemed shall be credited by the Registration Agent at 100% of the principal amount thereof on the obligation of the Municipality on such payment date and any excess shall be credited on future redemption obligations in chronological order, and the principal amount of Bonds to be redeemed by operation of this mandatory sinking fund provision shall be accordingly reduced. The Municipality shall on or before the forty-fifth (45th) day next preceding each payment date furnish the Registration Agent with its certificate indicating whether or not and to what extent the provisions of clauses (i) and (ii) of this subsection are to be availed of with respect to such payment and confirm that funds for the balance of the next succeeding prescribed payment will be paid on or before the next succeeding payment date.

(d) Notice of any call for redemption shall be given by the Registration Agent on behalf of the Municipality not less than thirty (30) nor more than sixty (60) days prior to the date fixed for redemption by sending an appropriate notice to the registered owners of the Bonds to be redeemed by first-class mail, postage prepaid, at the addresses shown on the Bond registration records of the Registration Agent as of the date of the notice; but neither failure to mail such notice nor any defect in any such notice so mailed shall affect the sufficiency of the proceedings for redemption of any of the Bonds for which proper notice was given. As long as DTC, or a successor Depository, is the registered owner of the Bonds, all redemption notices shall be mailed by the Registration Agent to DTC, or such successor Depository, as the registered owner of the Bonds, as and when above provided, and neither the Municipality nor the Registration Agent shall be responsible for mailing notices of redemption to DTC Participants or Beneficial Owners. Failure of DTC, or any successor Depository, to provide notice to any DTC Participant or Beneficial Owner will not affect the validity of such redemption. The Registration Agent shall mail said notices as and when directed by the Municipality pursuant to written instructions from an authorized representative of the Municipality (other than for a mandatory sinking fund redemption, notices of which shall be given on the dates provided herein) given at least forty-five (45) days prior to the redemption date (unless a shorter notice period shall be satisfactory to the Registration Agent). From and after the redemption date, all Bonds called for redemption shall cease to bear interest if funds are available at the office of the Registration Agent for the payment thereof and if notice has been duly provided as set forth herein.

(e) The Governing Body hereby authorizes and directs the Mayor to appoint the Registration Agent for the Bonds and hereby authorizes the Registration Agent so appointed or the Registration Agent for the Bonds to maintain Bond registration records with respect to the Bonds, to authenticate and deliver the Bonds as provided herein, either at original issuance or upon transfer, to effect transfers of the Bonds, to give all notices of redemption as required herein, to make all payments of principal and interest with respect to the Bonds as provided herein, to cancel and destroy Bonds which have been paid at maturity or upon earlier redemption or submitted for exchange or transfer, to furnish the Municipality at least annually a certificate of destruction with respect to Bonds cancelled and destroyed, and to furnish the Municipality at least annually an audit confirmation of Bonds paid, Bonds outstanding and payments made with respect to interest on the Bonds. The Mayor is hereby authorized to execute and the City Recorder is hereby authorized to attest such written agreement between the Municipality and the Registration Agent as they shall deem necessary and proper with respect to the obligations, duties and rights of the Registration Agent. The payment of all reasonable fees and expenses of the Registration Agent for the discharge of its duties and obligations hereunder or under any such agreement is hereby authorized and directed.

(f) The Bonds shall be payable, both principal and interest, in lawful money of the United States of America at the main office of the Registration Agent. The Registration Agent shall make all interest payments with respect to the Bonds by check or draft on each interest payment date directly to the registered owners as shown on the Bond registration records maintained by the Registration Agent as of the close of business on the fifteenth day of the month next preceding the interest payment date (the "Regular

Record Date”) by depositing said payment in the United States mail, postage prepaid, addressed to such owners at their addresses shown on said Bond registration records, without, except for final payment, the presentation or surrender of such registered Bonds, and all such payments shall discharge the obligations of the Municipality in respect of such Bonds to the extent of the payments so made. Payment of principal of and premium, if any, on the Bonds shall be made upon presentation and surrender of such Bonds to the Registration Agent as the same shall become due and payable. All rates of interest specified herein shall be computed on the basis of a three hundred sixty (360) day year composed of twelve (12) months of thirty (30) days each. In the event the Bonds are no longer registered in the name of DTC, or a successor Depository, if requested by the Owner of at least \$1,000,000 in aggregate principal amount of the Bonds, payment of interest on such Bonds shall be paid by wire transfer to a bank within the continental United States or deposited to a designated account if such account is maintained with the Registration Agent and written notice of any such election and designated account is given to the Registration Agent prior to the record date.

(g) Any interest on any Bond that is payable but is not punctually paid or duly provided for on any interest payment date (hereinafter “Defaulted Interest”) shall forthwith cease to be payable to the registered owner on the relevant Regular Record Date; and, in lieu thereof, such Defaulted Interest shall be paid by the Municipality to the persons in whose names the Bonds are registered at the close of business on a date (the “Special Record Date”) for the payment of such Defaulted Interest, which shall be fixed in the following manner: the Municipality shall notify the Registration Agent in writing of the amount of Defaulted Interest proposed to be paid on each Bond and the date of the proposed payment, and at the same time the Municipality shall deposit with the Registration Agent an amount of money equal to the aggregate amount proposed to be paid in respect of such Defaulted Interest or shall make arrangements satisfactory to the Registration Agent for such deposit prior to the date of the proposed payment, such money when deposited to be held in trust for the benefit of the persons entitled to such Defaulted Interest as in this Section provided. Thereupon, not less than ten (10) days after the receipt by the Registration Agent of the notice of the proposed payment, the Registration Agent shall fix a Special Record Date for the payment of such Defaulted Interest which date shall be not more than fifteen (15) nor less than ten (10) days prior to the date of the proposed payment to the registered Owners. The Registration Agent shall promptly notify the Municipality of such Special Record Date and, in the name and at the expense of the Municipality, not less than ten (10) days prior to such Special Record Date, shall cause notice of the proposed payment of such Defaulted Interest and the Special Record Date therefor to be mailed, first-class postage prepaid, to each registered owner at the address thereof as it appears in the Bond registration records maintained by the Registration Agent as of the date of such notice. Nothing contained in this Section or in the Bonds shall impair any statutory or other rights in law or in equity of any registered owner arising as a result of the failure of the Municipality to punctually pay or duly provide for the payment of principal of, premium, if any, and interest on the Bonds when due.

(h) The Bonds are transferable only by presentation to the Registration Agent by the registered owner, or his legal representative duly authorized in writing, of the registered Bond(s) to be transferred with the form of assignment on the reverse side thereof completed in full and signed with the name of the registered owner as it appears upon the face of the Bond(s) accompanied by appropriate documentation necessary to prove the legal capacity of any legal representative of the registered owner. Upon receipt of the Bond(s) in such form and with such documentation, if any, the Registration Agent shall issue a new Bond or the Bond to the assignee(s) in \$5,000 denominations, or integral multiples thereof, as requested by the registered owner requesting transfer. The Registration Agent shall not be required to transfer or exchange any Bond during the period commencing on a Regular or Special Record Date and ending on the corresponding interest payment date of such Bond, nor to transfer or exchange any Bond after the publication of notice calling such Bond for redemption has been made, nor to transfer or exchange any Bond during the period following the receipt of instructions from the Municipality to call such Bond for redemption; provided, the Registration Agent, at its option, may make transfers after any of said dates. No

charge shall be made to any registered owner for the privilege of transferring any Bond, provided that any transfer tax relating to such transaction shall be paid by the registered owner requesting transfer. The person in whose name any Bond shall be registered shall be deemed and regarded as the absolute owner thereof for all purposes and neither the Municipality nor the Registration Agent shall be affected by any notice to the contrary whether or not any payments due on the Bonds shall be overdue. The Bonds, upon surrender to the Registration Agent, may, at the option of the registered owner, be exchanged for an equal aggregate principal amount of the Bonds of the same maturity in any authorized denomination or denominations.

(i) The Bonds shall be executed in such manner as may be prescribed by applicable law, in the name, and on behalf, of the Municipality with the signature of the Mayor and the attestation of the City Recorder.

(j) Except as otherwise provided in this resolution, the Bonds shall be registered in the name of Cede & Co., as nominee of DTC, which will act as securities depository for the Bonds. References in this Section to a Bond or the Bonds shall be construed to mean the Bond or the Bonds that are held under the Book-Entry System. One Bond for each maturity shall be issued to DTC and immobilized in its custody or a custodian of DTC. The Bond Registrar is a custodian and agent for DTC, and the Bond will be immobilized in its custody. A Book-Entry System shall be employed, evidencing ownership of the Bonds in authorized denominations, with transfers of beneficial ownership effected on the records of DTC and the DTC Participants pursuant to rules and procedures established by DTC.

Each DTC Participant shall be credited in the records of DTC with the amount of such DTC Participant's interest in the Bonds. Beneficial ownership interests in the Bonds may be purchased by or through DTC Participants. The holders of these beneficial ownership interests are hereinafter referred to as the "Beneficial Owners." The Beneficial Owners shall not receive the Bonds representing their beneficial ownership interests. The ownership interests of each Beneficial Owner shall be recorded through the records of the DTC Participant from which such Beneficial Owner purchased its Bonds. Transfers of ownership interests in the Bonds shall be accomplished by book entries made by DTC and, in turn, by DTC Participants acting on behalf of Beneficial Owners. SO LONG AS CEDE & CO., AS NOMINEE FOR DTC, IS THE REGISTERED OWNER OF THE BONDS, THE REGISTRATION AGENT SHALL TREAT CEDE & CO. AS THE ONLY HOLDER OF THE BONDS FOR ALL PURPOSES UNDER THIS RESOLUTION, INCLUDING RECEIPT OF ALL PRINCIPAL OF, PREMIUM, IF ANY, AND INTEREST ON THE BONDS, RECEIPT OF NOTICES, VOTING AND REQUESTING OR DIRECTING THE REGISTRATION AGENT TO TAKE OR NOT TO TAKE, OR CONSENTING TO, CERTAIN ACTIONS UNDER THIS RESOLUTION.

Payments of principal, interest, and redemption premium, if any, with respect to the Bonds, so long as DTC is the only owner of the Bonds, shall be paid by the Registration Agent directly to DTC or its nominee, Cede & Co., as provided in the Letter of Representation relating to the Bonds from the Municipality and the Registration Agent to DTC (the "Letter of Representation"). DTC shall remit such payments to DTC Participants, and such payments thereafter shall be paid by DTC Participants to the Beneficial Owners. The Municipality and the Registration Agent shall not be responsible or liable for payment by DTC or DTC Participants for sending transaction statements or for maintaining, supervising or reviewing records maintained by DTC or DTC Participants.

In the event that (1) DTC determines not to continue to act as securities depository for the Bonds, or (2) the Municipality determines that the continuation of the Book-Entry System of evidence and transfer of ownership of the Bonds would adversely affect their interests or the interests of the Beneficial Owners of the Bonds, then the Municipality shall discontinue the Book-Entry System with DTC or, upon request of such original purchaser, deliver the Bonds to the original purchaser in the form of fully-registered Bonds, as the case may be. If the Municipality fails to identify another qualified securities depository to replace

DTC, the Municipality shall cause the Registration Agent to authenticate and deliver replacement Bonds in the form of fully-registered Bonds to each Beneficial Owner. If the purchaser(s) certifies that it intends to hold the Bonds for its own account, then the Municipality may issue certificated Bonds without the utilization of DTC and the Book-Entry System.

THE MUNICIPALITY AND THE REGISTRATION AGENT SHALL NOT HAVE ANY RESPONSIBILITY OR OBLIGATIONS TO ANY PARTICIPANT OR ANY BENEFICIAL OWNER WITH RESPECT TO (i) THE BONDS; (ii) THE ACCURACY OF ANY RECORDS MAINTAINED BY DTC OR ANY DTC PARTICIPANT; (iii) THE PAYMENT BY DTC OR ANY DTC PARTICIPANT OF ANY AMOUNT DUE TO ANY BENEFICIAL OWNER IN RESPECT OF THE PRINCIPAL OF AND INTEREST ON THE BONDS; (iv) THE DELIVERY OR TIMELINESS OF DELIVERY BY DTC OR ANY DTC PARTICIPANT OF ANY NOTICE DUE TO ANY BENEFICIAL OWNER THAT IS REQUIRED OR PERMITTED UNDER THE TERMS OF THIS RESOLUTION TO BE GIVEN TO BENEFICIAL OWNERS; (v) THE SELECTION OF BENEFICIAL OWNERS TO RECEIVE PAYMENTS IN THE EVENT OF ANY PARTIAL REDEMPTION OF THE BONDS; OR (vi) ANY CONSENT GIVEN OR OTHER ACTION TAKEN BY DTC OR ITS NOMINEE, CEDE & CO., AS OWNER.

(k) The Registration Agent is hereby authorized to take such action as may be necessary from time to time to qualify and maintain the Bonds for deposit with DTC, including but not limited to, wire transfers of interest and principal payments with respect to the Bonds, utilization of electronic book entry data received from DTC in place of actual delivery of Bonds and provision of notices with respect to Bonds registered by DTC (or any of its designees identified to the Registration Agent) by overnight delivery, courier service, telegram, telecopy or other similar means of communication. No such arrangements with DTC may adversely affect the interest of any of the owners of the Bonds; provided, however, that the Registration Agent shall not be liable with respect to any such arrangements it may make pursuant to this Section.

(l) The Registration Agent is hereby authorized to authenticate and deliver the Bonds to the original purchaser, upon receipt by the Municipality of the proceeds of the sale thereof and to authenticate and deliver Bonds in exchange for Bonds of the same principal amount delivered for transfer upon receipt of the Bond(s) to be transferred in proper form with proper documentation as hereinabove described. The Bonds shall not be valid for any purpose unless authenticated by the Registration Agent by the manual signature of an officer thereof on the certificate set forth herein on the Bond form.

(m) In case any Bond shall become mutilated, or be lost, stolen, or destroyed, the Municipality, in its discretion, shall issue, and the Registration Agent, upon written direction from the Municipality, shall authenticate and deliver, a new Bond of like tenor, amount, maturity and date, in exchange and substitution for, and upon the cancellation of, the mutilated Bond, or in lieu of and in substitution for such lost, stolen or destroyed Bond, or if any such Bond shall have matured or shall be able to mature, instead of issuing a substituted Bond the Municipality may pay or authorize payment of such Bond without surrender thereof. In every case, the applicant shall furnish evidence satisfactory to the Municipality and the Registration Agent of the destruction, theft or loss of such Bond, and indemnify satisfactory to the Municipality and the Registration Agent; and the Municipality may charge the applicant for the issue of such new Bond an amount sufficient to reimburse the Municipality for the expense incurred by it in the issue thereof.

Section 5. Source of Payment. The Bonds shall be payable from unlimited ad valorem taxes to be levied on all taxable property within the Municipality. For the prompt payment of the principal of, premium, if any, and interest on the Bonds, the full faith and credit of the Municipality are hereby irrevocably pledged.

Section 6. Form of Bonds. The Bonds shall be in substantially the following form, the omissions to be appropriate completed when the Bonds are prepared and delivered:

(Form of Bond)

REGISTERED
Number _____

REGISTERED
\$ _____

UNITED STATES OF AMERICA
STATE OF TENNESSEE
COUNTY OF SUMNER
CITY OF GALLATIN
GENERAL OBLIGATION BOND, SERIES 2020

Interest Rate: Maturity Date: Date of Bond: CUSIP No.:

Registered Owner:

Principal Amount:

FOR VALUE RECEIVED, the City of Gallatin, Tennessee (the "Municipality") hereby promises to pay to the registered owner hereof, hereinabove named, or registered assigns, in the manner hereinafter provided, the principal amount hereinabove set forth on the maturity date hereinabove set forth (or upon earlier redemption as set forth herein), and to pay interest (computed on the basis of a 360-day year of twelve 30-day months) on said principal amount at the annual rate interest hereinabove set forth from the date hereof until said maturity date or redemption date, said interest being payable on July 1, 2021, and semi-annually thereafter on the first day of January and July in each year until this Bond matures or is redeemed. The principal hereof and interest hereon are payable in lawful money of the United States of America by check or draft at the principal corporate trust office of _____, _____, as registration and agent and paying agent (the "Registration Agent"). The Registration Agent shall make all interest payments with respect to this Bond on each interest payment date directly to the registered owner hereof shown on the Bond registration records maintained by the Registration Agent as of the close of business on the fifteenth day of the month next preceding the interest payment date (the "Regular Record Date") by check or draft mailed to such owner at such owner's address shown on said Bond registration records, without, except for final payment, the presentation or surrender of this Bond, and all such payments shall discharge the obligations of the Municipality to the extent of the payments so made. Any such interest not so punctually paid or duly provided for on any interest payment date shall forthwith cease to be payable to the registered owner on the relevant Regular Record Date; and, in lieu thereof, such defaulted interest shall be payable to the person in whose name this Bond is registered at the close of business on the date (the "Special Record Date") for payment of such defaulted interest to be fixed by the Registration Agent, notice of which shall be given to the owners of the Bonds of the issue of which this Bond is one not less than ten (10) days prior to such Special Record Date. Payment of principal of this Bond shall be made when due upon presentation and surrender of this Bond to the Registration Agent.

Except as otherwise provided herein or in the Resolution, as hereinafter defined, this Bond shall be registered in the name of Cede & Co., as nominee of The Depository Trust Company, New York, New York ("DTC"), which will act as securities depository for the Bonds of the series of which this Bond is one. One Bond for each maturity of the Bonds shall be issued to DTC and immobilized in its custody. A book-entry system shall be employed, evidencing ownership of the Bonds in \$5,000 denominations, or multiples

thereof, with transfers of beneficial ownership effected on the records of DTC and the DTC Participants, as defined in the Resolution, pursuant to rules and procedures established by DTC. So long as Cede & Co., as nominee for DTC, is the registered owner of the Bonds, the Municipality and the Registration Agent shall treat Cede & Co. as the only owner of the Bonds for all purposes under the Resolution, including receipt of all principal and maturity amounts of, premium, if any, and interest on the Bonds, receipt of notices, voting and requesting or taking or not taking, or consenting to, certain actions hereunder. Payments of principal, maturity amounts, interest, and redemption premium, if any, with respect to the Bonds, so long as DTC is the only owner of the Bonds, shall be paid directly to DTC or its nominee, Cede & Co. DTC shall remit such payments to DTC Participants, and such payments thereafter shall be paid by DTC Participants to the Beneficial Owners, as defined in the Resolution. Neither the Municipality nor the Registration Agent shall be responsible or liable for payment by DTC or DTC Participants, for sending transaction statements or for maintaining, supervising or reviewing records maintained by DTC or DTC Participants. In the event that (1) DTC determines not to continue to act as securities depository for the Bonds or (2) the Municipality determines that the continuation of the book-entry system of evidence and transfer of ownership of the Bonds would adversely affect its interests or the interests of the Beneficial Owners of the Bonds, the Municipality may discontinue the book-entry system with DTC. If the Municipality fails to identify another qualified securities depository to replace DTC, the Municipality shall cause the Registration Agent to authenticate and deliver replacement Bonds in the form of fully-registered Bonds to each Beneficial Owner. Neither the Municipality nor the Registration Agent shall have any responsibility or obligations to DTC Participant or any Beneficial Owner with respect to (i) the Bonds; (ii) the accuracy or any records maintained by DTC or any DTC Participant; (iii) the payment by DTC or any DTC Participant of any amount due to any Beneficial Owner in respect of the principal or maturity amounts of and interest on the Bonds; (iv) the delivery or timeliness of delivery by DTC or any DTC Participant of any notice due to any Beneficial Owner that is required or permitted under the terms of the Resolution to be given to Beneficial Owners; (v) the selection of Beneficial Owners to receive payments in the event of any partial redemption of the Bonds; or (vi) any consent given or other action taken by DTC, or its nominee, Cede & Co., as owner.

[Bonds of the issue of which this Bond is one shall be subject to redemption prior to maturity at the option of the Municipality on January 1, 2031 and thereafter, as a whole or in part at any time at the redemption price of par plus accrued interest to the redemption date.]

If less than all the Bonds shall be called for redemption, the maturities to be redeemed shall be designated by the City Council of the Municipality, in its discretion. If less than all the principal amount of the Bonds of a maturity shall be called for redemption, the interests within the maturity to be redeemed shall be selected as follows:

(i) if the Bonds are being held under a Book-Entry System by DTC, or a successor Depository, the amount of the interest of each DTC Participant in the Bonds to be redeemed shall be determined by DTC, or such successor Depository, by lot or such other manner as DTC, or such successor Depository, shall determine; or

(ii) if the Bonds are not being held under a Book-Entry System by DTC, or a successor Depository, the Bonds within the maturity to be redeemed shall be selected by the Registration Agent by lot or such other random manner as the Registration Agent in its discretion shall determine.

[Subject to the credit hereinafter provided, the Municipality shall redeem Bonds maturing _____ on the redemption dates set forth below opposite the maturity dates, in aggregate principal amounts equal to the respective dollar amounts set forth below opposite the respective redemption dates at a price of par plus accrued interest thereon to the date of redemption. DTC, as securities depository

for the series of Bonds of which this Bond is one, or such Person as shall then be serving as the securities depository for the Bonds, shall determine the interest of each Participant in the Bonds to be redeemed using its procedures generally in use at that time. If DTC or another securities depository is no longer serving as securities depository for the Bonds, the Bonds to be redeemed within a maturity shall be selected by the Registration Agent by lot or such other random manner as the Registration Agent in its discretion shall select. The dates of redemption and principal amount of Bonds to be redeemed on said dates are as follows:

<u>Final Maturity</u>	<u>Redemption Date</u>	<u>Principal Amount of Bonds Redeemed</u>
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***Final Maturity**

At its option, to be exercised on or before the forty-fifth (45th) day next preceding any such redemption date, the Municipality may (i) deliver to the Registration Agent for cancellation Bonds to be redeemed, in any aggregate principal amount desired, and/or (ii) receive a credit in respect of its redemption obligation under this mandatory redemption provision for any Bonds of the maturity to be redeemed which prior to said date have been purchased or redeemed (otherwise than through the operation of this mandatory sinking fund redemption provision) and cancelled by the Registration Agent and not theretofore applied as a credit against any redemption obligation under this mandatory sinking fund provision. Each Bond so delivered or previously purchased or redeemed shall be credited by the Registration Agent at 100% of the principal amount thereof on the obligation of the Municipality on such payment date and any excess shall be credited on future redemption obligations in chronological order, and the principal amount of Bonds to be redeemed by operation of this mandatory sinking fund provision shall be accordingly reduced. The Municipality shall on or before the forty-fifth (45th) day next preceding each payment date furnish the Registration Agent with its certificate indicating whether or not and to what extent the provisions of clauses (i) and (ii) of this subsection are to be availed of with respect to such payment and confirm that funds for the balance of the next succeeding prescribed payment will be paid on or before the next succeeding payment date.]

Notice of any call for redemption shall be given by the Registration Agent not less than thirty (30) nor more than sixty (60) days prior to the date fixed for redemption by sending an appropriate notice to the registered owners of the Bonds to be redeemed by first-class mail, postage prepaid, at the addresses shown on the Bond registration records of the Registration Agent as of the date of the notice: but neither failure to mail such notice nor any defect in any such notice so mailed shall affect the sufficiency of the proceedings for the redemption of any of the Bonds for which proper notice was given. As long as DTC, or a successor Depository, is the registered owner of the Bonds, all redemption notices shall be mailed by the Registration Agent to DTC, or such successor Depository, as the registered owner of the Bonds, as and when above provided, and neither the Municipality nor the Registration Agent shall be responsible for mailing notices of redemption to DTC Participants or Beneficial Owners. Failure of DTC, or any successor Depository, to provide notice to any DTC Participant will not affect the validity of such redemption. From and after any redemption date, all Bonds called for redemption shall cease to bear interest if funds are available at the office of the Registration Agent for the payment thereof and it notice has been duly provided as set forth in the Resolution, as hereafter defined.

This Bond is transferable by the registered owner hereof in person or by such owner's attorney duly authorized in writing at the principal corporate trust office of the Registration Agent set forth on the front side hereof, but only in the manner, subject to limitations and upon payment of the charges provided in the Resolution, as hereafter defined, and upon surrender and cancellation of this Bond. Upon such transfer, a new Bond or Bonds of authorized denominations of the same maturity and interest rate for the same aggregate principal amount will be issued to the transferee in exchange therefor. The person in whose name this Bond is registered shall be deemed and regarded as the absolute owner thereof for all purposes and neither the Municipality nor the Registration Agent shall be affected by any notice to the contrary whether or not any payments due on the Bond shall be overdue. Bonds, upon surrender to the Registration Agent, may, at the option of the registered owner thereof, be exchanged for an equal aggregate principal amount of the Bonds of the same maturity in authorized denomination or denominations, upon the terms set forth in the Resolution. The Registration Agent shall not be required to transfer or exchange any Bond during the period commencing on a Regular Record Date or Special Record Date and ending on the corresponding interest payment date of such Bond, nor to transfer or exchange any Bond after the notice calling such Bond for redemption has been made, nor during a period following the receipt of instructions from the Municipality to call such Bond for redemption.

This Bond is one of a total authorized issue aggregating \$_____ and issued by the Municipality to finance the capital costs related to the acquisition, improvement and equipping of public works facilities and the issuance costs of the Bonds, pursuant to 9-21-101, et seq., Tennessee Code Annotated, as amended, and pursuant to a resolution adopted by the City Council of the Municipality on October 6, 2020 (the "Resolution").

The Bonds shall be payable from unlimited ad valorem taxes to be levied on all taxable property within the Municipality. For the prompt payment of the principal of, premium, if any, and interest on the Bonds, the full faith and credit of the Municipality are hereby irrevocably pledged.

This Bond and the income therefrom are exempt from all present state, county and municipal taxes in Tennessee except (a) Tennessee excise taxes on interest on the Bond during the period the Bond is held or beneficially owned by any organization or entity, other than a sole proprietorship or general partnership, doing business in the State of Tennessee, and (b) Tennessee franchise taxes by reason of the inclusion of the book value of the Bond in Tennessee franchise tax base of any organization or entity, other than a sole proprietorship or general partnership, doing business in the State of Tennessee.

It is hereby certified, recited, and declared that all acts, conditions and things required to exist, happen and be performed precedent to and in the issuance of this Bond exist, happen and be performed precedent to and in the issuance of this Bond exist, have happened and have been performed in due time, form and manner as required by law, and that the amount of this Bond, together with all other indebtedness of the Municipality, does not exceed any limitation prescribed by the constitution and statutes of the State of Tennessee.

IN WITNESS WHEREOF, the Municipality has caused this Bond to be signed by its Mayor and attested by its City Recorder under the corporate seal of the Municipality, all as of the date hereinabove set forth.

CITY OF GALLATIN, TENNESSEE

By: _____
Mayor

(SEAL)

ATTESTED:

City Recorder

Transferable and payable at the
principal corporate trust office of: _____

Date of Registration: _____

This Bond is one of the issue of Bonds issued pursuant to the Resolution hereinabove described.

Registration Agent

By: _____
Authorized Officer

(FORM OF ASSIGNMENT)

FOR VALUE RECEIVED, the undersigned sells, assigns and transfers unto _____, whose address is _____ (Please insert Federal Identification or Social Security Number of Assignee _____), the within Bond of City of Gallatin, Tennessee, and does hereby irrevocably constitute and appoint _____, attorney, to transfer the said Bond on the records kept for registration thereof with full power of substitution in the premises.

Dated: _____

NOTICE: The signature to this assignment must correspond with the name of the registered owner as it appears on the face of the within Bond in every particular, without alteration or enlargement or any change whatsoever.

Signature guaranteed:

NOTICE: Signature(s) must be guaranteed by a member firm of a Medallion Program acceptable to the Registration Agent

Section 7. Levy of Tax. The Municipality, through its Governing Body, shall annually levy and collect a tax upon all taxable property within the Municipality, in addition to all other taxes authorized

by law, sufficient to pay principal of, premium, if any, and interest on the Bonds when due, and for that purpose there is hereby levied a direct annual tax in such amount as may be found necessary each year to pay principal and interest coming due on the Bonds in said year. Principal and interest falling due at any time when there are insufficient funds from this tax levy on hand shall be paid from the current funds of the Municipality and reimbursement therefor shall be made out of the taxes hereby provided to be levied when the same shall have been collected. The tax herein provided may be reduced to the extent of any direct appropriations from other funds, taxes and revenues of the Municipality to the payment of debt service on the Bonds.

Section 8. Sale of Bonds.

(a) The Bonds shall be offered for competitive public sale in one or more series, at a price of not less than 98% of par, plus accrued interest, as a whole or in part from time to time as shall be determined by the Mayor, in consultation with the Municipal Advisor. If the Bonds are sold in more than one series, the Mayor is authorized to cause to be sold in each series an aggregate principal amount of Bonds less than that shown in Section 4 hereof for each series, so long as the total aggregate principal amount of all series issued does not exceed the total aggregate of Bonds authorized to be issued herein.

(b) The Mayor is authorized with respect to each series of Bonds to:

(1) change the dated date of the Bonds, or any series thereof, to a date other than the date of issuance of the Bonds;

(2) change the designation of the Bonds, or any series thereof, to a designation other than "General Obligation Bonds" and to specify the series designation of the Bonds, or any series thereof;

(3) change the first interest payment date on the Bonds, or any series thereof, to a date other than July 1, 2021, provided that such date is not later than twelve months from the dated date of such series of Bonds;

(4) adjust the principal and interest payment dates and the maturity amounts of the Bonds, or any series thereof, provided that (A) the total principal amount of all series of the Bonds does not exceed the total amount of Bonds authorized herein; and (B) the final maturity date of each series shall not exceed the final maturity described in Section 4 hereof.

(5) adjust or remove the Municipality's optional redemption provisions of the Bonds, provided that the premium amount to be paid on Bonds or any series thereof does not exceed two percent (2%) of the principal amount thereof; and

(6) sell the Bonds, or any series thereof, or any maturities thereof as Term Bonds with mandatory redemption requirements corresponding to the maturities set forth herein or as otherwise determined by the Mayor, as he shall deem most advantageous to the Municipality.

The form of the Bond set forth in Section 6 hereof shall be conformed to reflect any changes made pursuant to this Section 8 hereof.

(c) The Mayor is authorized to sell the Bonds, or any series thereof, simultaneously with any other bonds or notes authorized by resolution or resolutions of the Governing Body. The Mayor is further authorized to sell the Bonds, or any series thereof, as a single issue of bonds with any other bonds with substantially similar terms authorized by resolution or resolutions of the Governing Body, in one or more

series as the Mayor shall deem to be advantageous to the Municipality and in doing so, the Mayor is authorized to change the designation of the Bonds to a designation other than "General Obligation Bonds"; provided, however, that the total aggregate principal amount of combined bonds to be sold does not exceed the total aggregate principal amount of Bonds authorized by this resolution or bonds authorized by any other resolution or resolutions adopted by the Governing Body.

(d) The Mayor is authorized to award the Bonds, or any series thereof, in each case to the bidder whose bid results in the lowest true interest cost to the Municipality, provided the rate or rates on the Bonds does not exceed the maximum rate prescribed by Section 4 hereof. The award of the Bonds by the Mayor to the lowest bidder shall be binding on the Municipality, and no further action of the Governing Body with respect thereto shall be required.

(e) The Mayor and City Recorder are authorized to cause the Bonds, in book-entry form (except as otherwise permitted herein), to be authenticated and delivered by the Registration Agent to the successful bidder and to execute, publish, and deliver all certificates and documents, including an official statement and closing certificates, as they shall deem necessary in connection with the sale and delivery of the Bonds. The Mayor is hereby authorized to enter into a contract with the Municipal Advisor, for Municipal Advisory services in connection with the sale of the Bonds and to enter into a contract with Bass, Berry & Sims PLC to serve as bond counsel in connection with the Bonds, and all actions heretofore taken by the officers of the Municipality in that regard are hereby ratified and approved. The forms of the engagement letters with the Municipal Advisor and bond counsel, set forth in Exhibits A and B hereto, are hereby approved.

(f) No Bonds attributable to the Projects shall be issued until publication of the Initial Resolution in a newspaper of general circulation in the Municipality and the passage of 20 days from the date of publication thereof, and in no event shall the Bonds be issued if a legally sufficient petition, as defined by Section 9-21-207, Tennessee Code Annotated, is filed within such 20-day period.

Section 9. Disposition of Bond Proceeds. The proceeds of the sale of the Bonds shall be disbursed as follows shall be deposited with a financial institution regulated by the Federal Deposit Insurance Corporation or similar federal agency in a special fund known as the 2020 Construction Fund (the "Construction Fund"), or such other designation as shall be determined by the Mayor to be kept separate and apart from all other funds of the Municipality. The Municipality shall disburse funds in the Construction Fund to pay costs of issuance of the Bonds, including necessary legal, accounting and fiscal expenses, printing, engraving, advertising and similar expenses, administrative and clerical costs, Registration Agent fees, bond insurance premiums, if any, and other necessary miscellaneous expenses incurred in connection with the issuance and sale of the Bonds. Notwithstanding the foregoing, costs of issuance of the Bonds may be withheld from the good faith deposit or purchase price of the Bonds and paid to the Municipal Advisor to be used to pay costs of issuance of the Bonds. The remaining funds in the Construction Fund shall be disbursed solely to pay the costs of the Projects and to reimburse the Municipality for any funds previously expended for costs of the Projects. Money in the Construction Fund shall be secured in the manner prescribed by applicable statutes relative to the securing of public or trust funds, if any, or, in the absence of such a statute, by a pledge of readily marketable securities having at all times a market value of not less than the amount in said Construction Fund. Money in the Construction Fund shall be invested in such investments as shall be permitted by applicable law to the extent permitted by applicable law. Earnings from such investments shall be, to the extent permitted by applicable law and as directed by the County's Finance Director: (i) retained in the Construction Fund to reimburse the Construction Fund for any costs of issuance paid related to the issuance of the Bonds; (ii) retained in the Construction Fund to the extent needed for the Projects, and/or (iii) applied to the payment of debt service on the Bonds. Any funds remaining in the Construction Fund after completion of the Project shall be used to pay interest on the Bonds.

Section 10. Official Statement. The officers of the Municipality are hereby authorized and directed to provide for the preparation and distribution of a Preliminary Official Statement describing the Bonds. After bids have been received and the Bonds have been awarded, the officers of the Municipality shall make such completions, omissions, insertions and changes in the Preliminary Official Statement not inconsistent with this resolution as are necessary or desirable to complete it as a final Official Statement for purposes of Rule 15c2-12(e)(3) of the Securities and Exchange Commission. The officers of the Municipality shall arrange for the delivery to the successful bidder on the Bonds of a reasonable number of copies of the Official Statement within seven business days after the Bonds have been awarded for delivery, by the successful bidder on the Bonds, to each potential investor requesting a copy of the Official Statement and to each person to whom such bidder and members of his bidding group initially sell the Bonds.

The officers of the Municipality, or any of them, are authorized, on behalf of the Municipality, to deem the Preliminary Official Statement and the Official Statement in final form, each to be final as of its date within the meaning of Rule 15c2-12(b)(1), except for the omission in the Preliminary Official Statement of certain pricing and other information allowed to be omitted pursuant to such Rule 15c2-12(b)(1). The distribution of the Preliminary Official Statement and the Official Statement in final form shall be conclusive evidence that each has been deemed in final form as of its date by the Municipality except for the omission in the Preliminary Official Statement of such pricing and other information.

Notwithstanding the foregoing, no Official Statement is required to be prepared if the Bonds, or any series thereof, are purchased by a purchaser that certifies that such purchaser intends to hold the Bonds, or any series thereof, for its own account and has no present intention to reoffer the Bonds, or any series thereof.

Section 11. Discharge and Satisfaction of Bonds. If the Municipality shall pay and discharge the indebtedness evidenced by any series of the Bonds in any one or more of the following ways:

(a) By paying or causing to be paid, by deposit of sufficient funds as and when required with the Registration Agent, the principal of and interest on such Bonds as and when the same become due and payable;

(b) By depositing or causing to be deposited with any trust company or financial institution whose deposits are insured by the Federal Deposit Insurance Corporation or similar federal agency and which has trust powers (an "Agent"; which agent may be the Registration Agent) in trust or escrow, on or before the date of maturity or redemption, sufficient money or Defeasance Obligations, as hereafter defined, the principal of and interest on which, when due and payable, will provide sufficient moneys to pay or redeem such Bonds and to pay interest thereon when due until the maturity or redemption date (provided, if such Bonds are to be redeemed prior to maturity thereof, proper notice of such redemption shall have been given or adequate provision shall have been made for the giving of such notice);

(c) By delivering such Bonds to the Registration Agent for cancellation by it;

and if the Municipality shall also pay or cause to be paid all other sums payable hereunder by the Municipality with respect to such Bonds, or make adequate provision therefor, and by resolution of the Governing Body instruct any such escrow agent to pay amounts when and as required to the Registration Agent for the payment of principal of and interest on such Bonds when due, then and in that case the indebtedness evidenced by such Bonds shall be discharged and satisfied and all covenants, agreements and obligations of the Municipality to the holders of such Bonds shall be fully discharged and satisfied and shall thereupon cease, terminate and become void.

If the Municipality shall pay and discharge the indebtedness evidenced by any of the Bonds in the manner provided in either clause (a) or clause (b) above, then the registered owners thereof shall thereafter be entitled only to payment out of the money or Defeasance Obligations deposited as aforesaid.

Except as otherwise provided in this Section, neither Defeasance Obligations nor moneys deposited with the Registration Agent pursuant to this Section nor principal or interest payments on any such Defeasance Obligations shall be withdrawn or used for any purpose other than, and shall be held in trust for, the payment of the principal and interest on said Bonds; provided that any cash received from such principal or interest payments on such Defeasance Obligations deposited with the Registration Agent, (A) to the extent such cash will not be required at any time for such purpose, shall be paid over to the Municipality as received by the Registration Agent and (B) to the extent such cash will be required for such purpose at a later date, shall, to the extent practicable, be reinvested in Defeasance Obligations maturing at times and in amounts sufficient to pay when due the principal and interest to become due on said Bonds on or prior to such redemption date or maturity date thereof, as the case may be, and interest earned from such reinvestments shall be paid over to the Municipality, as received by the Registration Agent. For the purposes of this Section, Defeasance Obligations shall direct obligations of, or obligations, the principal of and interest on which are guaranteed by, the United States of America, which bonds or other obligations shall not be subject to redemption prior to their maturity other than at the option of the registered owner thereof.

Section 12. Federal Tax Matters Related to the Bonds.

(a) The Bonds will be issued as federally tax-exempt bonds. The Municipality hereby covenants that it will not use, or permit the use of, any proceeds of the Bonds in a manner that would cause the Bonds to be subjected to treatment under Section 148 of the Code, and applicable regulations thereunder, as an “arbitrage bond”. To that end, the Municipality shall comply with applicable regulations adopted under said Section 148. The Municipality further covenants with the registered owners from time to time of the Bonds that it will, throughout the term of the Bonds and through the date that the final rebate, if any, must be made to the United States in accordance with Section 148 of the Code, comply with the provisions of Sections 103 and 141 through 150 of the Code and all regulations proposed and promulgated thereunder that must be satisfied in order that interest on the Bonds shall be and continue to be excluded from gross income for federal income tax purposes under Section 103 of the Code.

(b) It is reasonably expected that the Municipality will reimburse itself for certain expenditures made by it in connection with the Projects by issuing the Bonds. This resolution shall be placed in the minutes of the Governing Body and shall be made available for inspection by the general public at the office of the Governing Body. This resolution constitutes a declaration of official intent under Treas. Reg. §1.150-2.

(c) The Governing Body hereby delegates to the Mayor the authority to designate, and determine whether to designate, the Bonds as “qualified tax-exempt obligations,” as defined in Section 265 of the Code, to the extent the Bonds are not deemed designated as such and may be designated as such.

(d) The appropriate officers of the Municipality are authorized and directed, on behalf of the Municipality, to execute and deliver all such certificates and documents that may be required of the Municipality in order to comply with the provisions of this Section related to the issuance of the Bonds.

Section 13. Continuing Disclosure. The Municipality hereby covenants and agrees that it will provide annual financial information and material event notices if and as required by Rule 15c2-12 of the Securities Exchange Commission for the Bonds. The Mayor is authorized to execute at the Closing of the sale of the Bonds an agreement for the benefit of and enforceable by the owners of the Bonds specifying

the details of the financial information and material event notices to be provided and its obligations relating thereto. Failure of the Municipality to comply with the undertaking herein described and to be detailed in said closing agreement shall not be a default hereunder, but any such failure shall entitle the owner or owners of any of the Bonds to take such actions and to initiate such proceedings as shall be necessary and appropriate to cause the Municipality to comply with their undertaking as set forth herein and in said agreement, including the remedies of mandamus and specific performance.

Section 14. Reasonably Expected Economic Life. The “reasonably expected economic life” of the Project within the meaning of Sections 9-21-101, et seq., Tennessee Code Annotated, is greater than the term of the Bonds authorized herein.

Section 15. Resolution a Contract. The provisions of this resolution shall constitute a contract between the Municipality and the registered owners of the Bonds, and after the issuance of the Bonds, no change, variation or alteration of any kind in the provisions of this resolution shall be made in any manner until such time as the Bonds and interest due thereon shall have been paid in full.

Section 16. Separability. If any section, paragraph or provision of this resolution shall be held to be invalid or unenforceable for any reason, the invalidity or unenforceability of such section, paragraph or provision shall not affect any of the remaining provisions of this resolution.

Section 17. Repeal of Conflicting Resolutions and Effective Date. All other resolutions and orders, or parts thereof in conflict with the provisions of this resolution, are, to the extent of such conflict, hereby repealed and this resolution shall be in immediate effect from and after its adoption.

BE IT FURTHER RESOLVED that this Resolution shall take effect from and after its final passage the public welfare requiring such.

IT IS SO ORDERED.

PRESENT AND VOTING:

AYE:

NAY:

DATED:

MAYOR PAIGE BROWN

ATTEST:

CONNIE KITTRELL
CITY RECORDER

APPROVED AS TO FORM:

SUSAN HIGH-MCAULEY
CITY ATTORNEY

EXHIBIT A

Engagement Letter of Municipal Advisor

OCTOBER 6, 2020

Gallatin, Tennessee
Honorable Paige Brown
132 West Main Street
Gallatin, TN 37066

Re: Gallatin, Tennessee General Obligation Bonds, Series 2020

Dear Mayor Brown:

Pursuant to our recent conversations, we are pleased to confirm the arrangements under which Oakdale Municipal Advisors, LLC ("Oakdale") will be hired as Municipal Advisor to provide advisory services to Gallatin, Tennessee (the "Municipality") in connection with the bond issue referenced above (the "Bonds"). We look forward to assisting the Municipality in the successful completion of this transaction.

1. Scope of Services

Oakdale is being hired as Municipal Advisor to provide the services under this Agreement. In its capacity as Municipal Advisor, Oakdale will provide the following services to complete the issuance of the Bonds.

- Assist and advise in connection with the preparation and implementation of the Bonds;
- Assist the Municipality in the selection of bond counsel, paying agent, rating agency(ies) and any other members required for the financing team;
- Coordinate execution of the financing plan, including serving as the main contact with the Municipality and all financing team members;
- Develop a schedule that incorporates all phases of the financing process;
- Prepare a credit package that will include all relative credit information to be used in conjunction with the procurement of a credit rating, which data will be used in large part to create the "Information Concerning the Municipality" section of both the preliminary and final official statements (collectively, the "Official Statement") used in connection with the offer and sale of the Bonds;
- Working with the Municipality, devise the structure of the issue, and arrange for the offering of the Bonds at public sale on a date decided upon by Oakdale and the Municipality;
- Assist in the preparation of the Official Statement;

- Verify bids for the Bonds and advise as to award of the Bonds;
- Assist in the preparation of legal documentation of the proposed transaction;
- Assist in the preparation and verification of final closing calculations; and
- Coordinate the activities for a successful closing including preparation of a flow of funds or “closing” memorandum.

Both parties acknowledge and agree that Oakdale is acting solely as a municipal advisor with respect to the Bonds. Oakdale’s engagement is limited to providing municipal advisory services with respect to this issuance of bonds. Oakdale is not a fiduciary of any other party to the transaction and will be neither party to, nor liable under, any contract, agreement, or understanding executed or otherwise existing to affect the Bonds. Oakdale will not investigate the veracity of any certifications provided by any party; provide legal or accounting assurance that any matter or procedure complies with any applicable law; or be liable to any party if the Bonds fail to close or for default of same.

2. Information to be Supplied

In connection with Oakdale’s activities on the Municipality’s behalf, the Municipality agrees to (a) fully cooperate with Oakdale, (b) promptly furnish to Oakdale any and all information and data concerning the Municipality and the Bonds that Oakdale deems appropriate (the “Information”), and (c) provide Oakdale with full access to the Municipality’s officers, directors, employees, appraisers, independent accountants, legal counsel and other consultants and advisors.

The Municipality understands and acknowledges that Oakdale will be using and relying on the Information to render its services and will not verify the same or independently appraise any of the assets or liabilities of the Municipality. The Municipality agrees that Oakdale has no obligation to and is not expected to verify the Information or appraise any Municipality assets or liabilities. Oakdale does not assume responsibility for the accuracy or completeness of the Information or any other information regarding the Municipality, any prospective party to a bond issuance or any bond issuance. The Municipality agrees that it is solely responsible for the accuracy and completeness of such information.

3. Compensation and Expenses

It is understood that Oakdale will be paid a municipal advisory fee of \$30,000 for services rendered relating to the issuance of the Bonds. This will be the only fee charged by Oakdale and will cover all out-of-pocket expenses incurred by Oakdale during this engagement. The fee shall be earned at the closing of the transaction and will be paid at that time.

The Municipality acknowledges that it will be responsible for paying the expenses incident to the issuance of the Bonds, including but not limited to (i) underwriter’s discount, (ii) the cost of the preparation, printing or other reproduction of reasonable quantities of the Official Statement, including shipping and distribution costs, (iii) the cost of printing, signing, registering and authenticating the book-entry Bonds, (iv) expenses of rating agency(ies), and (v) the fees of bond counsel, the registration agent, and of any other experts or consultants retained by the Municipality.

4. Term and Termination of the Engagement

This agreement shall be in effect from the date hereof until the time that this agreement is terminated. This agreement will automatically terminate upon the successful closing of the issuance of the Bonds. The Municipality or Oakdale may terminate this agreement at any prior time immediately upon written notice to the other party. Notwithstanding the foregoing, the provisions of the second paragraph of Section 3 (Responsibility for Other Expenses), 8 (Independent Contractor), and 9 (Non-Exclusive Relationship) will survive termination.

5. Binding Effect

This agreement will be binding upon Oakdale, the Municipality and their respective successors. No waiver, amendment or other modification of this agreement shall be effective unless in writing and signed by each party to be bound. In case any provision of this letter agreement shall be invalid, illegal or unenforceable, the validity, legality and enforceability of the remaining provisions of this letter agreement shall not in any way be affected or impaired thereby.

6. Entire Agreement

This Agreement is the entire agreement of the parties and supersedes all prior or contemporaneous written or oral negotiations, correspondence, agreements and understandings (including any and all pre-existing investment management agreements between the parties, which are hereby cancelled), regarding the subject matter hereof.

7. Counterparts

This Agreement may be executed in any number of counterparts, each of which shall be deemed an original but all of which together shall constitute one and the same instrument.

8. Independent Contractor

Oakdale is and will hereafter act as an independent contractor and not as an employee of the Municipality, and nothing in this agreement may be interpreted or construed to create any employment, partnership, joint venture or other relationship between Oakdale and the Municipality.

9. Non-Exclusive Relationship

The Municipality acknowledges and agrees that this Agreement will not restrict Oakdale from serving as Municipal Advisor for other clients. Specifically, Oakdale is currently or has recently served Sumner County and multiple municipalities within Sumner County as municipal advisor on issues of debt. Oakdale will devote, in its reasonable discretion, the assets, resources, and personnel reasonably required to perform the services hereunder.

10. Additional Disclosures

- Oakdale may utilize the legal services of Bass, Berry & Sims PLC from time to time on unrelated matters. For this engagement, it is understood that Bass, Berry & Sims PLC will represent solely the Municipality as bond counsel.
- There have been no material changes or additions to the legal or disciplinary event disclosures on form MA or MA-1 filed with the Securities and Exchange Commission by Oakdale since the initial firm filing.

If you find the terms of this Letter of Engagement acceptable, please sign below and return one copy to Oakdale.

We look forward to working with you to meet your financial objectives. Should you have questions, please contact me at 615.351.4409.

Yours sincerely,

Oakdale Municipal Advisors, LLC

By: Julianne G. Graham
Julianne G. Graham, President

.....

This Letter of Engagement is hereby accepted and approved this _____ day of _____ 2020.

Gallatin, Tennessee

By: _____

Its: _____

EXHIBIT B

Engagement Letter of Bond Counsel

October 6, 2020

City of Gallatin, Tennessee
Attn: The Honorable Paige Brown
132 West Main Street
Gallatin, Tennessee 37066

Re: Issuance of Not to Exceed \$17,500,000 General Obligation Bonds (the "Bonds")

Dear Mayor Brown:

The purpose of this engagement letter is to set forth certain matters concerning the services we will perform as bond counsel to the City of Gallatin, Tennessee (the "Issuer"), in connection with the issuance of the above-referenced bonds (the "Bonds"). We understand that the Bonds are being issued for the purpose of providing funds to fund school and public improvement projects, and to pay costs incident to the issuance and sale of the Bonds. We further understand that the Bonds will be sold at a competitive public sale.

SCOPE OF ENGAGEMENT

In this engagement, we expect to perform the following duties:

1. Subject to the completion of proceedings to our satisfaction, render our legal opinion (the Bond Opinion) regarding the validity and binding effect of the Bonds, the source of payment and security for the Bonds, and the excludability of interest on the Bonds from gross income for federal income tax purposes.
2. Prepare and review documents necessary or appropriate for the authorization, issuance and delivery of the Bonds. coordinate the authorization and execution of such documents, and review enabling legislation.
3. Assist the Issuer in seeking from other governmental authorities such approvals, permissions and exemptions as we determine are necessary or appropriate in connection with the authorization, issuance, and delivery of the Bonds, except that we will not be responsible for any required blue-sky filings.
4. Review legal issues relating to the structure of the Bond issues.
5. Prepare election proceedings or pursue validation proceedings, if any.

6. Draft those sections of the official statement disseminated in connection with the sale of the Bonds, describing the Bond Opinion, the terms of and security for the Bonds, and the treatment of the Bonds and interest thereon under state and federal tax law.
7. Assist the Issuer in presenting information to bond rating organizations and providers of credit enhancement relating to legal issues affecting the issuance of the Bonds.

Our Bond Opinion will be addressed to the Issuer and will be delivered by us on the date the Bonds are exchanged for their purchase price (the "Closing").

The Bond Opinion will be based on facts and law existing as of its date. In rendering our Bond Opinion, we will rely upon the certified proceedings and other certifications of public officials and other persons furnished to us without undertaking to verify the same by independent investigation, and we will assume continuing compliance by the Issuer with applicable laws relating to the Bonds. During the course of this engagement, we will rely on you to provide us with complete and timely information on all developments pertaining to any aspect of the Bonds and their security. We understand that you will direct members of your staff and other employees of the Issuer to cooperate with us in this regard.

Our duties in this engagement are limited to those expressly set forth above. Among other things, our duties do not include:

- a. Except as described in paragraph (6) above,
 - 1) Assisting in the preparation or review of an official statement or any other disclosure document with respect to the Bonds, or
 - 2) Performing an independent investigation to determine the accuracy, completeness or sufficiency of any such document, or
 - 3) Rendering advice that the official statement or other disclosure documents
 - a) Do not contain any untrue statement of a material fact or
 - b) Do not omit to state a material fact necessary to make the statements contained therein, in light of the circumstances under which they were made, not misleading.
- b. Preparing requests for tax rulings from the Internal Revenue Service, or no action letters from the Securities and Exchange Commission.
- c. Preparing blue sky or investment surveys with respect to the Bonds.
- d. Drafting state constitutional or legislative amendments.
- e. Pursuing test cases or other litigation, (such as contested validation proceedings) except as set forth above.
- f. Making an investigation or expressing any view as to the creditworthiness of the Issuer or the Bonds.

- g. Assisting in the preparation of, or opining on, any continuing disclosure undertaking pertaining to the Bonds or any other outstanding debt of the City, or, providing advice concerning any actions necessary to assure compliance with any continuing disclosure undertaking.
- h. Representing the Issuer in Internal Revenue Service examinations or inquiries, or Securities and Exchange Commission investigations.
- i. After Closing, providing continuing advice to the Issuer or any other party concerning any actions necessary to assure that interest paid on the Bonds will continue to be excludable from gross income for federal income tax purposes (e.g., our engagement does not include rebate calculations for the Bonds).
- j. Addressing any other matter not specifically set forth above that is not required to render our Bond Opinion.

ATTORNEY-CLIENT RELATIONSHIP

Upon execution of this engagement letter, the Issuer will be our client and an attorney-client relationship will exist between us. We assume that all other parties will retain such counsel as they deem necessary and appropriate to represent their interests in this transaction. We further assume that all other parties understand that in this transaction we represent only the Issuer, we are not counsel to any other party, and we are not acting as an intermediary among the parties. Our services as bond counsel are limited to those contracted for in this letter; the Issuer's execution of this engagement letter will constitute an acknowledgment of those limitations. Our representation of the Issuer will not affect, however, our responsibility to render an objective Bond Opinion. Please note that, in our representation of the Issuer, we will not act as a "municipal advisor", as such term is defined in the Securities Exchange Act of 1934, as amended.

Our representation of the Issuer and the attorney-client relationship created by this engagement letter will be concluded upon issuance of the Bonds. Nevertheless, subsequent to Closing, we will mail the appropriate Internal Revenue Service Forms 8038-G, and prepare and distribute to the participants in the transaction a transcript of the proceedings pertaining to the Bonds.

As you are aware, our firm represents many political subdivisions, companies and individuals. It is possible that during the time that we are representing the Issuer, one or more of our present or future clients will have transactions with the Issuer. It is also possible that we may be asked to represent, in an unrelated matter, one or more of the entities involved in the issuance of the Bonds. We do not believe such representation, if it occurs, will adversely affect our ability to represent you as provided in this letter, either because such matters will be sufficiently different from the issuance of the Bonds as to make such representations not adverse to our representation of you, or because the potential for such adversity is remote or minor and outweighed by the consideration that it is unlikely that advice given to the other client will be relevant to any aspect of the issuance of the Bonds. Execution of this letter will signify the Issuer's consent to our representation of others consistent with the circumstances described in this paragraph.

FEES

Based upon: (i) our current understanding of the terms, structure, size and schedule of the financing represented by the Bonds in an aggregate principal amount of not to exceed \$25,000; (ii) the duties we will undertake pursuant to this engagement letter; (iii) the time we anticipate devoting to the financings; and (iv) the responsibilities we will assume in connection therewith, our fee is estimated to be \$60,000. The fees quoted above include all out-of-pocket expenses advanced for your benefit, such as travel costs, photocopying, deliveries, long distance telephone charges, telecopier charges, filing fees, computer-assisted research and other expenses.

If, for any reason, the financing represented by the Bonds as described in the paragraph above is completed without the delivery of our Bond Opinion as bond counsel or our services are otherwise terminated, we will expect to be compensated at our normal rates for the time actually spent on your behalf plus client charges as described above unless we have failed to meet our responsibilities under this engagement, but in no event will the amount we are paid exceed \$25,000.

RECORDS

At your request, papers and property furnished by you will be returned promptly upon receipt of payment for outstanding fees and client charges. All goods, documents, records, and other work product and property produced during the performance of this Contract are deemed to be Issuer's property. Our own files, including lawyer work product, pertaining to the transaction will be retained by us for a period of three (3) years and be subject to inspection by Issuer upon reasonable notice.

OTHER MATTERS

We have not retained any persons to solicit or secure this engagement from the Issuer upon an agreement or understanding for a contingent commission, percentage, or brokerage fee. We have not offered any employee of the Issuer a gratuity or an offer of employment in connection with this engagement and no employee has requested or agreed to accept a gratuity or offer of employment in connection with this engagement.

Any modification or amendment to this Engagement Letter must be in writing, executed by us and contain the signatures of the Issuer. The validity, construction and effect of this Engagement Letter and any and all extensions and/or modifications thereof shall be governed by the laws of the State of Tennessee. Any action between the parties arising from this Engagement Letter shall be maintained in the state or federal courts of Davidson County, Tennessee to the extent permitted by applicable law.

CONCLUSION

If the foregoing terms are acceptable to you, please so indicate by returning the enclosed copy of this engagement letter dated and signed by an authorized officer, retaining the original for your files. We look forward to working with you.

CITY OF GALLATIN, TENNESSEE

By: _____
Paige Brown, Mayor

BASS, BERRY & SIMS PLC:

By: Jeffrey A. Oldham
Jeffrey A. Oldham, Member

STATE OF TENNESSEE)

COUNTY OF SUMNER)

I, Connie Kittrell, certify that I am the duly qualified and acting City Recorder of the City of Gallatin, Tennessee, and as such official I further certify that attached hereto is a copy of excerpts from the minutes of the meeting of the City Council of the Municipality held on October 6, 2020; that these minutes were promptly and fully recorded and are open to public inspection; that I have compared said copy with the original minute record of said meeting in my official custody; and that said copy is a true, correct and complete transcript from said original minute record insofar as said original record relates to up to \$17,500,000 in principal amount of the Municipality's General Obligation Bonds.

WITNESS my official signature and seal of said Municipality on _____, 2020.

City Recorder

(SEAL)

25926173.3

**CITY OF GALLATIN
COUNCIL COMMITTEE AGENDA**

10/13/2020

DEPARTMENT: **Finance**

AGENDA #

SUBJECT:

Resolutions approving 2020 General Obligation bond issue

SUMMARY:

Continued discussion of resolutions approving 2020 General Obligation bond issue for various city-wide projects

RECOMMENDATION:

approval

ATTACHMENT:



**Resolution
Ordinance**

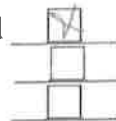


**Correspondence
Contract**



**Bid Tabulation
Other**

Approved
Rejected
Deferred



Notes:

RESOLUTION NO. R2010-55

**RESOLUTION AUTHORIZING THE MAYOR TO SIGN
CONTRACT "520", 2020 WITH J. CUMBY CONSTRUCTION, INC.**

BE IT RESOLVED BY THE CITY OF GALLATIN, TENNESSEE, that the Mayor of Gallatin is authorized to sign and execute contract documents with J. Cumby Construction, Inc. in the amount of \$2,894,000,00 for construction of Industrial Park Pump Station under Contract "520", 2020.

BE IT FURTHER RESOLVED, that this resolution shall take effect from and after its final passage, the public welfare requiring such.

IT IS SO ORDERED.

PRESENT AND VOTING

AYE:

NAY:

DATED:

MAYOR PAIGE BROWN

ATTEST:

CONNIE KITTRELL
CITY RECORDER

APPROVED AS TO FORM:

SUSAN HIGH-MCAULEY
CITY ATTORNEY

ORDINANCE NO. 02007-29

ORDINANCE APPROPRIATING \$8,400,000 FOR
PROJECT WOOL HAWK UTILITY INFRASTRUCTURE

BE IT ORDAINED BY THE CITY OF GALLATIN, TENNESSEE, that the sum of \$8,400,000 is hereby appropriated from the Water/Sewer Fund Donations, account number 413-36700, with \$3,400,000 being appropriated to Water Transmission and Distribution, account 41352114-934-256, and \$5,000,000 being appropriated to Sewer Collection (Lines), account 41352211-934-256, for the utility line infrastructure installation related to Project Wool Hawk; and,

BE IT FURTHER ORDAINED BY THE CITY OF GALLATIN, TENNESSEE, that this Ordinance shall take effect upon passage, the public welfare requiring such.

PASSED FIRST READING: July 7, 2020.

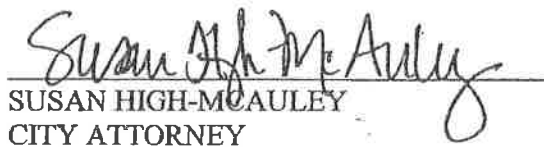
PASSED SECOND READING: July 21, 2020.


MAYOR PAIGE BROWN

ATTEST:


CONNIE KITTRELL
CITY RECORDER

APPROVED AS TO FORM:


SUSAN HIGH-McAULEY
CITY ATTORNEY

JAMES C. HAILEY & COMPANY

Consulting Engineers

1619 Galleria Blvd
Brentwood, Tennessee 37027
Telephone: 615-883-4933
Fax: 615-883-4937

JAMES C. HAILEY, P.E.

ROBERT L. RAMSEY, P.E.
MATTHEW R. TUCKER, P.E.
MICHAEL N. GREEN, P.E.

September 24, 2020

Mr. David Gregory
City of Gallatin
Department of Public Utilities
239 Hancock Street
Gallatin, TN 37066

**RE: Contract 520
Industrial Park Pump Station**

Dear Mr. Gregory:

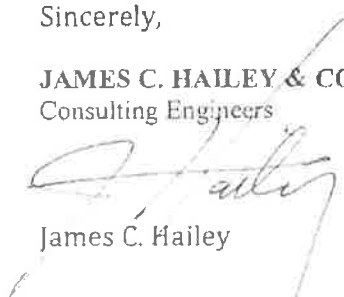
On September 24, 2020 bids were received for the above-referenced project. A tabulation of bids is attached displaying the bids for each contractor for Contract 520.

All bids were sealed with proper documentation, and no irregularities were apparent at the bid opening. Based on our evaluation, we recommend that the City of Gallatin award the **Contract 520 - Industrial Park Pump Station** to **J. Cumby Construction, Inc.** in the amount of **\$2,894,000.00**. Also enclosed are a preliminary project budget and a Notice of Award to be signed by the Mayor.

If you have any questions or if we can be of assistance, please let us know.

Sincerely,

JAMES C. HAILEY & COMPANY
Consulting Engineers



James C. Hailey

Enclosures

CITY OF GALLATIN
Contract 520 - Industrial Park Pump Station
PROJECT BUDGET

CONSTRUCTION	\$ 2,894,000.00
ENGINEERING DESIGN	\$ 159,000.00
ENGINEERING DURING CONSTRUCTION	\$ 71,000.00
INSPECTION	\$ 93,700.00
PERMITS, FEES, SURVEYS, ETC	\$ 32,000.00
CONTINGENCY	<u>\$ 150,300.00</u>
TOTAL ESTIMATED PROJECT COST	<u><u>\$ 3,400,000.00</u></u>

CITY OF GALLATIN
CONTRACT 520 - INDUSTRIAL PARK PUMP STATION
NEW BID DATE: SEPTEMBER 24, 2020
BID TIME: 10:00 a.m. , CDST

CONTRACTOR	BASE BID
J. CUMBY CONSTRUCTION, INC 165 W. Broad Street Cookeville, TN 38501 (ph) 931-526-5158	\$2,894,000.00
W & O CONSTRUCTION 150 Construction Drive Livingston TN 38570 (ph) 931-403-1000 (fax) 931-403-3888	\$3,098,600.00
REEVES YOUNG LLC. 45 Peachtree Industrial Blvd, STE 200 Sugar Hill, GA 30518 (ph) 770-602-4478	\$3,499,000.00
REYNOLDS CONSTRUCTION, LLC 6225 N County Road 75 E Orleans, IN 47452 (ph) 904-695-9290	\$3,995,000.00
MORGAN CONTRACTING, INC. PO Box 5009 Knoxville, TN 37928 (ph) 865-249-8640	\$4,691,958.00
3D ENTERPRISES CONTRACTING CORP 3257 Lochness Drive Lexington, KY 40517 (ph) 859-272-6618 (fax) 859-273-7206	NO BID
JAMES C. HAILEY & COMPANY <i>Consulting Engineers</i> 1619 Galleria Boulevard Brentwood, TN 37027 Phone (615) 883-4933 Fax (615) 883-4937	

Notice of Award

Dated _____

Project: Industrial Park Pump Station	Owner: City of Gallatin	Owner's Contract No.:
Contract: 520	Engineer's Project No.: 18152	
Bidder: J. Cumby Construction, Inc.		
Bidder's Address: (send Certified Mail, Return Receipt Requested)		
165 W. Broad Street		
Cookeville, TN 38501		

You are notified that your Bid dated **September 24, 2020** for the above Contract has been considered. You are the Successful Bidder and are awarded a Contract for **Industrial Park Pump Station**

(Indicate total Work, alternates or sections or Work awarded.)

The Contract Price of your Contract is **Two Million Eight Hundred Ninety-Four Thousand and no/100** Dollars (**\$2,894,000.00**).

(Insert appropriate data if Unit Prices are used. Change language for Cost-Plus contracts.)

4 copies of each of the proposed Contract Documents (except Drawings) accompany this Notice of Award.

4 sets of the Drawings will be delivered separately or otherwise made available to you immediately.

You must comply with the following conditions precedent within [15] days of the date you receive this Notice of Award.

1. Deliver to the Owner [4] fully executed counterparts of the Contract Documents.
2. Deliver with the executed Contract Documents the Contract security [Bonds] as specified in the Instructions to Bidders (Article 20), [and] General Conditions (Paragraph 5.01) [and Supplementary Conditions (Paragraph SC-5.01).]
3. Other conditions precedent:

Failure to comply with these conditions within the time specified will entitle Owner to consider you in default, annul this Notice of Award and declare your Bid security forfeited.

Within ten days after you comply with the above conditions, Owner will return to you one fully executed counterpart of the Contract Documents.

City of Gallatin
Owner
By: _____
Authorized Signature

Title

Copy to Engineer

NA - 1

BID TABULATION CITY OF GALLATIN CONTRACT 520 - INDUSTRIAL PARK PUMP STATION City of Gallatin 239 Hancock Street Gallatin, TN 37066 BID DATE: 09/24/2020			JAMES C. HAILEY & COMPANY Consulting Engineers 1619 Galleria Boulevard Brentwood, TN 37027 JCH PROJECT NO: 18152		
BID SECURITY	BID BOND	BID BOND	BID BOND	BID BOND	BID BOND
BIDDER AND ADDRESS	J. CUMBY CONSTRUCTION 165 W. Broad Street Cookeville, TN 38501	W & O CONSTRUCTION 150 Construction Drive Livingston, TN 38570	REEVES YOUNG, LLC 45 Peachtree Industrial Blvd, STE 200 Sugar Hill, GA 30518	REYNOLDS CONSTRUCTION, LLC. 6225 N. County Road 75 E Orleans, IN 47452	MORGAN CONTRACTING, INC. PO Box 5009 Knoxville, TN 37928
BASE BID	\$2,894,000.00	\$3,098,600.00	\$3,499,000.00	\$3,995,000.00	\$4,691,958.00
<u>ADJUSTMENT ITEMS</u>	<u>UNIT</u>				
Rock (Mass Excavation)	C.Y.	100.00	60.00		65.00
Rock (Trench Excavation)	C.Y.	150.00	150.00	70.00	170.00
Earth Excavation	C.Y.	40.00	15.00	10.00	65.00
Concrete (In place w/o forms)	C.Y.	350.00	300.00	200.00	24.00
Concrete (In place with forms)	C.Y.	700.00	800.00	550.00	300.00
Reinforcing Steel	LB	2.00	1.25	450.00	1,497.00
Crushed Stone or Gravel (in place)	YD	40.00	40.00	1.00	1.05
Engineered Earth Fill (in place)	C.Y.	40.00	35.00	60.00	35.00
6 Foot High Chain Link Fence	LF	30.00	25.00	80.00	40.25
Asphalt Paving including Base & Binder	SY	30.00	27.00	28.00	15.00
Electrical conduit and Wire Designation No. 21	LF	56.00	100.00	30.00	125.00
			180.00	48.00	27.00
				150.00	48.00
					92.00
<u>ALTERNATE EQUIPMENT</u>					
<u>Item 11-B - GRINDER</u>					
A. JWC Environmental; Model C MID 3210 XDS-2.0	95,000.00	100,000.00	95,000.00	95,000.00	114,000.00
B. Franklin Miller; Taskmaster Model TM 14040	(55,000.00)	(45,000.00)	N/A	(40,000.00)	N/A
C. Moyno; Series A Muncher	N/A	N/A	N/A	N/A	N/A
D. Other (Specify Manufacturer)	(60,000.00) Vogelsang	N/A	(60,000.00) Vogelsang	N/A	(82,800.00) Vogelsang
<u>Item 11-D - PULPERS/SUBMERSIBLE PUMPS (3 REQUIRED)</u>					
A. Tanhanks NJHUIS	115,000.00	115,000.00	115,000.00	115,000.00	138,000.00
B. Flygt Nylem	N/A	N/A	N/A	N/A	N/A
C. WILCO USA, LLC	N/A	N/A	N/A	N/A	N/A
D. SULZER/ABS	N/A	N/A	N/A	N/A	N/A
<u>Item 11-E - ADJUSTABLE VARIABLE FREQUENCY DRIVES (1 REQUIRED)</u>					
A. Eaton	32,000.00	32,000.00	32,000.00	32,000.00	38,400.00
B. Danfoss	N/A	N/A	N/A	N/A	N/A
C. Allen Bradley	N/A	N/A	N/A	N/A	N/A
D. Other	N/A	N/A	N/A	N/A	N/A

I, James C. Hailey, Jr., certify that the above Bid Tabulation reflects the actual Bids submitted with errors corrected for Contract 520 - Industrial Park Pump Station.



**CITY OF GALLATIN
COUNCIL COMMITTEE AGENDA**

[October 13, 2020]

DEPARTMENT: Utilities

AGENDA # 7

SUBJECT:

Resolution No. R2010-55

SUMMARY:

Resolution Authorizing The Mayor to sign Contract "520", 2020 with J. Cumby Construction, Inc.

RECOMMENDATION:

ATTACHMENT:

☒ Resolution
☐ Ordinance

☒ Correspondence
☐ Contract

☒ Bid Tabulation
☒ Other

Approved ☒
Rejected ☐
Deferred ☐

Notes:

Project Budget
Notice of Award

This contract is funded by Project Wool Hawk for sanitary sewer installations, \$5,000,000.00. See attached Ordinance O02007-29.

RESOLUTION NO. R2010-56

**RESOLUTION AUTHORIZING THE MAYOR TO SIGN
CONTRACT "620", 2020 WITH HAWKINS & PRICE, LLC.**

BE IT RESOLVED BY THE CITY OF GALLATIN, TENNESSEE, that the Mayor of Gallatin is authorized to sign and execute contract documents with Hawkins & Price, LLC in the amount of \$668,345.00 for the installation of Industrial Park Force Main-Phase 1 under Contract "620", 2020.

BE IT FURTHER RESOLVED, that this resolution shall take effect from and after its final passage, the public welfare requiring such.

IT IS SO ORDERED.

PRESENT AND VOTING

AYE:

NAY:

DATED:

MAYOR PAIGE BROWN

ATTEST:

CONNIE KITTRELL
CITY RECORDER

APPROVED AS TO FORM:

SUSAN HIGH-MCAULEY
CITY ATTORNEY

ORDINANCE APPROPRIATING \$8,400,000 FOR
PROJECT WOOL HAWK UTILITY INFRASTRUCTURE

BE IT ORDAINED BY THE CITY OF GALLATIN, TENNESSEE, that the sum of \$8,400,000 is hereby appropriated from the Water/Sewer Fund Donations, account number 413-36700, with \$3,400,000 being appropriated to Water Transmission and Distribution, account 41352114-934-256, and \$5,000,000 being appropriated to Sewer Collection (Lines), account 41352211-934-256, for the utility line infrastructure instillation related to Project Wool Hawk; and,

BE IT FURTHER ORDAINED BY THE CITY OF GALLATIN, TENNESSEE, that this Ordinance shall take effect upon passage, the public welfare requiring such.

PASSED FIRST READING: July 7, 2020.

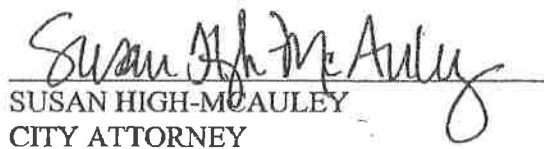
PASSED SECOND READING: July 21, 2020.


MAYOR PAIGE BROWN

ATTEST:


CONNIE KITTRELL
CITY RECORDER

APPROVED AS TO FORM:


SUSAN HIGH-MCAULEY
CITY ATTORNEY

JAMES C. HAILEY & COMPANY

Consulting Engineers

1619 Galleria Blvd
Brentwood, Tennessee 37027
Telephone: 615-883-4933
Fax: 615-883-4937

JAMES C. HAILEY, P.E.

ROBERT L. RAMSEY, P.E.
MATTHEW R. TUCKER, P.E.
MICHAEL N. GREEN, P.E.

September 24, 2020

Mr. David Gregory
City of Gallatin
Department of Public Utilities
239 Hancock Street
Gallatin, TN 37066

RE: Contract 620
Industrial Park Force Main – Phase 1

Dear Mr. Gregory:

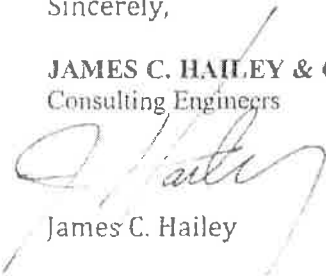
On September 24, 2020 bids were received for the above-referenced project. A tabulation of bids is attached displaying the bids for each contractor for Contract 620.

All bids were sealed with proper documentation, and no irregularities were apparent at the bid opening. Based on our evaluation, we recommend that the City of Gallatin award the **Contract 620 - Industrial Park Force Main – Phase 1** to **Hawkins & Price, LLC** in the amount of **\$668,345.00**. Also enclosed are a preliminary project budget and a Notice of Award to be signed by the Mayor.

If you have any questions or if we can be of assistance, please let us know.

Sincerely,

JAMES C. HAILEY & COMPANY
Consulting Engineers



James C. Hailey

Enclosures

CITY OF GALLATIN
 CONTRACT 620 - INDUSTRIAL PARK FORCE MAIN PHASE 1
 NEW BID DATE: SEPTEMBER 24, 2020
 BID TIME: 11:00 a.m. , CDST

CONTRACTOR	BASE BID
HAWKINS & PRICE, LLC 5096 Hwy 64 E Wartrace, TN 37183 (ph) 931-389-0909	\$668,345.00
PINNACLE CONSTRUCTORS, INC. PO Box 331965 Murfreesboro, TN 37129 (ph) 629-333-9754	\$674,975.00
INFINITY PIPELINE, INC. PO Box 928 Bowling Green, KY 42102 (ph) 931-935-2005	\$687,600.00
GARNEY CONSTRUCTION 200 Crutchfield Avenue Nashville, TN 37210 (ph) 615-350-7975	\$781,575.00
CIVIL CONSTRUCTORS, LLC PO Box 685 Franklin, TN 37065 (ph) 615-236-9000	\$971,945.00
JAMES N. BUSH CONSTRUCTION, INC. PO Box 69 Silver Point, TN 38582 (ph) 931-526-3223	\$1,317,025.00
SMITH CONTRACTORS, INC 1241 Bypass North Lawrenceburg, KY 40342 (ph) 502-839-4196	NO BID
W & O CONSTRUCTION 150 Construction Drive Livingston TN 38570 (ph) 931-403-1000	NO BID
SCOTT & RITTER, INC. PO Box 749 Bowling Green, KY 42102 (ph) 270-781-9988	NO BID
JSJ CONSTRUCTION, LLC PO Box 668 Springfield, TN 37172 (615) 380-8253	NO BID
JAMES C. HAILEY & COMPANY <i>Consulting Engineers</i> 1619 Galleria Boulevard Brentwood, TN 37027 Phone (615) 883-4933 Fax (615) 883-4937	

CITY OF GALLATIN

Contract 620 - Industrial Park Force Main - Phase 1

PROJECT BUDGET

CONSTRUCTION	\$ 668,345.00
ENGINEERING DESIGN	\$ 36,000.00
ENGINEERING DURING CONSTRUCTION	\$ 16,000.00
INSPECTION	\$ 30,900.00
PERMITS, FEES, SURVEYS, ETC	\$ 8,500.00
CONTINGENCY	<u>\$ 40,255.00</u>
TOTAL ESTIMATED PROJECT COST	<u><u>\$ 800,000.00</u></u>

NOTICE OF AWARD

TO: Hawkins & Price, LLC.
5096 Hwy 64 East
Wartrace, TN 37183

PROJECT DESCRIPTION: CONTRACT 620 – INDUSTRIAL PARK FORCE MAIN – PHASE 1

The **OWNER** has considered the **BID** submitted by you for the above-described **WORK** in response to its Advertisement to Bid dated August 2020, and Information for Bidders.

You are required by the Information for Bidders to execute the Agreement and furnish the required **CONTRACTOR'S** Performance and Payment Bond within ten (10) calendar days from the date of this Notice to you.

If you fail to execute said Agreement and to furnish said bonds within ten (10) days from the date of this Notice, said **OWNER** will be entitled to consider all your rights arising out of the **OWNER'S** acceptance of your **BID** as abandoned and as a forfeiture of your Bid Bond. The **OWNER** will be entitled to such other rights as may be granted by law.

You are required to return an acknowledged copy of this **NOTICE OF AWARD** to the **OWNER**.

Dated this ____ day of _____, 2020.

City of Gallatin
OWNER
BY _____
Title _____ Mayor

ACCEPTANCE OF NOTICE

Receipt of the above **NOTICE OF AWARD** is hereby acknowledged

By Hawkins & Price, LLC.

this the ____ day of _____, 2020

By _____

Title _____

**CITY OF GALLATIN
COUNCIL COMMITTEE AGENDA**

[October 13, 2020]

DEPARTMENT: Utilities

AGENDA # 8

SUBJECT:

Resolution No. R2010-56

SUMMARY:

Resolution Authorizing The Mayor to sign Contract "620", 2020 with Hawkins & Price, LLC.

RECOMMENDATION:

ATTACHMENT:

☒ Resolution
☐ Ordinance

☒ Correspondence
☐ Contract

☒ Bid Tabulation
☐ Other

Approved ☒
Rejected ☐
Deferred ☐

Notes:

Project Budget
Notice of Award

This contract is funded by Project Wool Hawk for sanitary sewer installations, \$5,000,000.00. See attached Ordinance 002007-29.

**RESOLUTION AUTHORIZING THE GALLATIN PUBLIC WORKS
DEPARTMENT TO APPLY FOR THE STATE OF TENNESSEE
VOLKSWAGON DIESEL SETTLEMENT MEDIUM AND LARGE TRUCK
GRANT THROUGH TENNESSEE DEPARTMENT OF ENVIRONMENT AND
CONSERVATION**

WHEREAS, the Gallatin Public Works Department (GPW) requests Council approval to apply for the Medium and Large Truck Grant from the Tennessee Department of Environment and Conservation; and

WHEREAS, the grant would be used for the replacement of high emissions trucks to help mitigate the environmental effects of said emissions; and

WHEREAS, the Medium and Large Truck Grant is a matching grant requiring 75% from the State of Tennessee Volkswagon Diesel Settlement and 25% from Gallatin Public Works Department; and

WHEREAS, GPW would provide its match for Garbage Trucks from the Environmental Services Fund (\$100,000) and the Dump Truck from the General Fund (\$25,000);

NOW THEREFORE BE IT RESOLVED BY THE CITY OF GALLATIN, TENNESSEE, that the City Council hereby authorizes Gallatin Public Works Department to apply for the Volkswagon Diesel Settlement Medium and Large Truck Grant; and

BE IT FURTHER RESOLVED, that this resolution shall take effect from and after its final passage, the public welfare requiring such.

IT IS SO ORDERED.

PRESENT AND VOTING

AYE:

NAY:

DATED:

MAYOR PAIGE BROWN

ATTEST:

CONNIE KITTRELL
CITY RECORDER

APPROVED AS TO FORM:

SUSAN HIGH-MCAULEY
CITY ATTORNEY

**CITY OF GALLATIN
COUNCIL COMMITTEE AGENDA**

October 13, 2020

DEPARTMENT: Public Works

AGENDA #

SUBJECT:

Volkswagen Diesel Settlement Large Truck Grant Application

SUMMARY:

The Public Works Department wishes to apply for the State of Tennessee Volkswagen Diesel Settlement Environmental Mitigation Trust Medium and Large Truck Grant. Application will be for (2) Automated Garbage Trucks and (1) Dump truck. Grant application will be for a 75% Grant / 25% City split. Funding for the Garbage Trucks match (Approx \$100K) would come from the Environmental Services fund and funding for the Dump Truck match (Aprox. \$25K) would need to be appropriated from the General Fund, if awarded the grant. Attached Resolution declares a statement of financial commitment for the matching funds, if the grant is awarded.

RECOMMENDATION:

ATTACHMENT:

☒ Resolution
☐ Ordinance

☐ Correspondence
☐ Contract

☐ Bid Tabulation
☐ Other

Approved
Rejected
Deferred

☒
☐
☐

Notes:

RESOLUTION NO. R2010-58

**RESOLUTION ACCEPTING PUBLIC IMPROVEMENTS BY THE CITY OF
GALLATIN, TENNESSEE
CUMBERLAND PLACE NORTH, PHASE 1, SECTION 4**

WHEREAS, THE CITY OF GALLATIN PLANNING COMMISSION has recommended acceptance by the City of Gallatin of the public improvements in the development hereinafter named Cumberland Place North, Phase 1, Section 4; and

WHEREAS, THE CITY OF GALLATIN ENGINEERING DIVISION hereby certifies that the public drainage infrastructure, rights-of-way, and public easements in Cumberland Place North, Phase 1, Section 4 have been satisfactorily completed and have been installed in accordance with the approved plans and specifications and that there has been full compliance with the City of Gallatin Subdivision Regulations; and

WHEREAS, THE CITY OF GALLATIN PUBLIC UTILITIES DEPARTMENT hereby certifies that the public utility improvements in the development described hereafter have been satisfactorily completed and have been installed in accordance with the approved plans and specifications and that there has been full compliance with the City of Gallatin Subdivision Regulations and City of Gallatin Municipal Code.

NOW THEREFORE BE IT RESOLVED BY THE CITY OF GALLATIN, TENNESSEE, pursuant to Chapter 3, Section 3-105, et seq. of the Subdivision Regulations of Gallatin, Tennessee, that the public drainage infrastructure, rights-of way, public easements, and public utility improvements, as described in Cumberland Place North, Phase 1, Section 4, Plat Book 25, Page(s) 376, recorded on June 23, 2008 in the Register's Office for Sumner County, are hereby accepted by the City of Gallatin, Tennessee.

BE IT FURTHER RESOLVED BY THE CITY OF GALLATIN, TENNESSEE, that this Resolution shall take effect from and after its final passage, the public welfare requiring such.

IT IS SO ORDERED.

PRESENT AND VOTING:

AYE:

NAY:

DATED:

MAYOR PAIGE BROWN

ATTEST:

APPROVED AS TO FORM:

CONNIE KITTRELL
CITY RECORDER

SUSAN HIGH-MCAULEY
CITY ATTORNEY

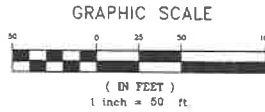
SURVEYOR'S NOTES:

- THIS SURVEYOR WAS NOT FURNISHED WITH A TITLE SEARCH OR TITLE POLICY, THEREFORE THIS SURVEY IS SUBJECT TO THE FINDINGS OF AN ACCURATE TITLE SEARCH. ONLY THE DOCUMENTS NOTED HEREON WERE SUPPLIED TO THIS SURVEYOR. THERE MAY EXIST OTHER DOCUMENTS THAT WOULD AFFECT THE SUBJECT PROPERTY. THIS SURVEY DOES NOT CONSTITUTE A TITLE SEARCH.
- DEED REFERENCE: JUSTIN CUTLER, ETAL
R.B. 2674, PG. 355, R.O.S.C. TN.
- MAP AND PARCEL NUMBERS SHOWN REFER TO THE SUMNER COUNTY TAX ASSESSOR'S MAPS. THE SUBJECT PROPERTY SHOWN ON THIS PLAT IS PART OF PARCEL 111.01, ON TAX MAP 148.
- THE LOCATIONS OF EXISTING UNDERGROUND UTILITIES SHOWN WERE TAKEN FROM SURFACE IMPROVEMENTS, UTILITY COMPANY RECORDS, AND/OR PLANS BY OTHERS. ACTUAL FIELD LOCATIONS AND SIZES OF THESE LINES SHOULD BE OBTAINED PRIOR TO ANY CONSTRUCTION ON THIS SITE. ADDITIONAL BURIED UTILITIES AND/OR STRUCTURES MAY BE ENCOUNTERED. NO EXCAVATIONS WERE MADE DURING THE PROGRESS OF THIS SURVEY TO LOCATE BURIED UTILITIES AND/OR STRUCTURES. BEFORE ANY EXCAVATION HAS BEGUN ON THIS SITE CALL 1-800-351-1111 FOR UNDERGROUND UTILITY LOCATIONS.
- ALL BUILDINGS, SURFACE IMPROVEMENTS, AND SUBSURFACE IMPROVEMENTS ON AND ADJACENT TO THIS SITE ARE NOT NECESSARILY SHOWN HEREON.
- SUBSURFACE AND/OR ENVIRONMENTAL CONDITIONS WERE NOT EXAMINED OR CONSIDERED AS A PART OF THIS SURVEY.
- BEARINGS ARE BASED ON THE TENNESSEE STATE PLANE COORDINATE SYSTEM, NAD 83.
- PROPERTY IS ZONED "R-15 P.R.D." AS OF THE DATE OF THIS SURVEY.
- THIS IS A CATEGORY I SURVEY IN COMPLIANCE WITH THE RULES OF THE STATE OF TENNESSEE, BOARD OF EXAMINERS FOR LAND SURVEYORS, CHAPTER 0820-3, STANDARDS OF PRACTICE. THE ERROR OF CLOSURE FOR THE UNADJUSTED FIELD SURVEY IS BETTER THAN 1 : 10,000.
- A REVIEW OF F.E.M.A. FLOOD INSURANCE RATE MAP, COMMUNITY PANEL NO. 47165C04280, SHOWS NONE OF THE PROPERTY TO BE WITHIN THE 100 YR. FLOOD PLAIN AND WITHIN ZONE X. MAP DATED SEPTEMBER 20, 2006.
- EXISTING USE OF PROPERTY IS VACANT. PROPOSED USE IS SINGLE FAMILY RESIDENTIAL.
- ALL LOT CORNERS ARE TO BE MARKED WITH A CAPPED 1/2" IRON ROD.

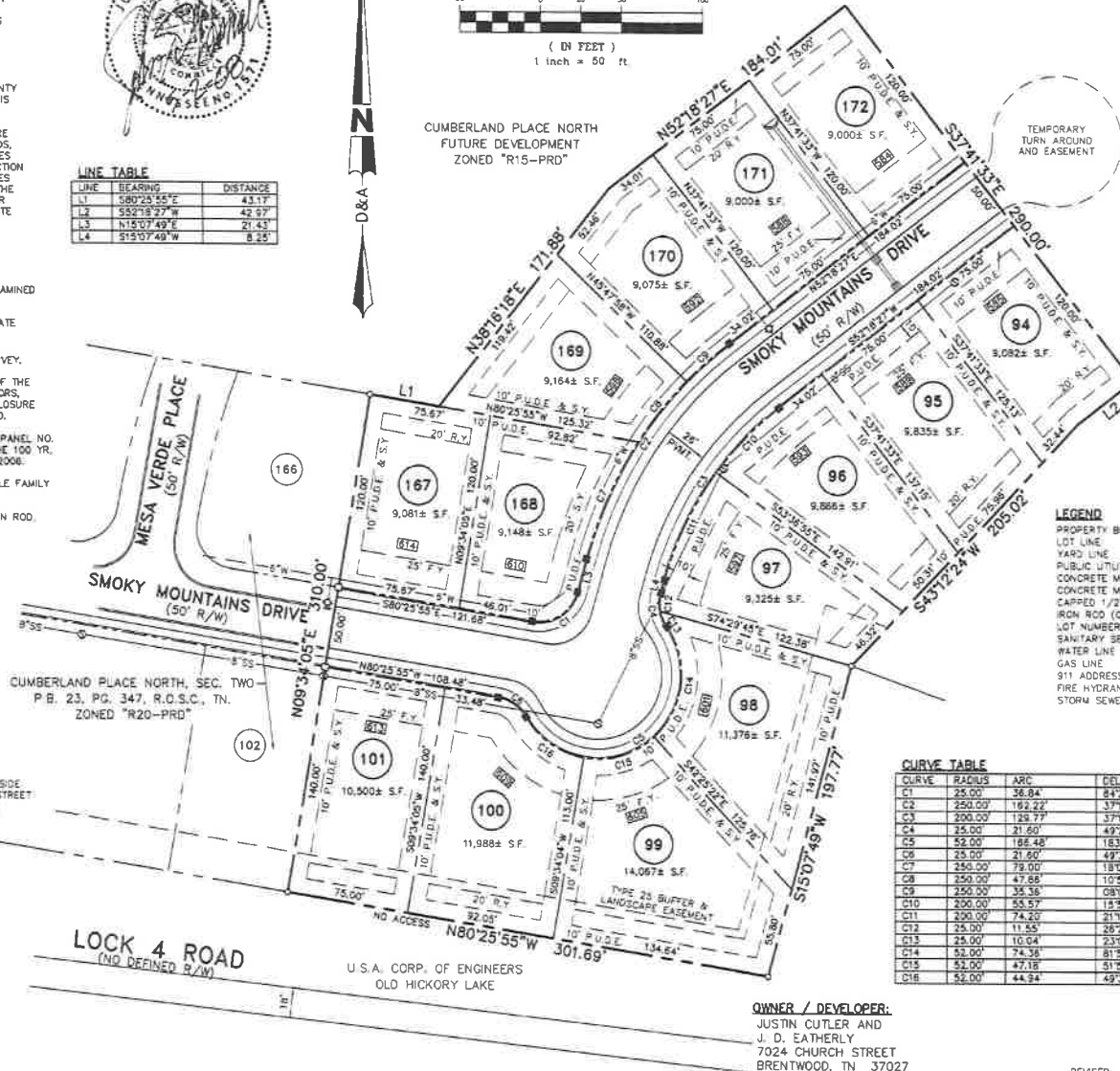
JOHN T. DARNALL
LAND SURVEYOR
COMM. # 10000

LINE TABLE

LINE	BEARING	DISTANCE
L1	S80°23'55"E	43.17
L2	S55°18'27"W	42.27
L3	N15°07'49"E	21.43
L4	S15°07'49"W	8.25



CUMBERLAND PLACE NORTH
FUTURE DEVELOPMENT
ZONED "R15-PRD"



LOCATION MAP NOT TO SCALE

ESTABLISHED
JULY 1, 2008
JAMES C. JONES
COUNTY ASSESSOR

MAP OF CITY OF GALLATIN

CUMBERLAND PLACE NORTH
FUTURE DEVELOPMENT
ZONED "R15-PRD"

LEGEND

- PROPERTY BOUNDARY
- LOT LINE
- YARD LINE
- PUBLIC UTILITY & DRAINAGE ESM
- CONCRETE MONUMENT (NEW)
- CONCRETE MONUMENT (OLD)
- CAPPED 1/2" IRON ROD (NEW)
- IRON ROD (OLD)
- LOT NUMBER
- SANITARY SEWER W/ MANHOLE
- WATER LINE
- GAS LINE
- 911 ADDRESS
- FIRE HYDRANT
- STORM SEWER

CURVE TABLE

CURVE	RADIUS	ARC	DELTA	CHORD	
C1	25.00	36.84	56°20'16"	S67°20'57"W	33.60
C2	250.00	162.22	37°10'37"	N33°43'08"E	159.38
C3	200.00	128.77	37°10'37"	S33°43'08"W	127.51
C4	25.00	21.60	49°29'42"	N09°37'02"W	20.93
C5	52.00	16.48	163°28'25"	S67°21'07"W	103.95
C6	25.00	21.60	49°29'42"	S64°40'42"E	20.94
C7	250.00	79.00	18°08'16"	N24°10'57"E	78.67
C8	250.00	47.66	10°58'04"	N38°43'07"E	47.78
C9	250.00	35.36	08°06'17"	N48°15'18"E	35.33
C10	200.00	55.57	15°55'11"	N44°20'50"E	55.39
C11	200.00	74.29	21°15'25"	N55°49'58"E	73.78
C12	25.00	11.55	26°25'32"	N01°33'33"E	11.45
C13	25.00	10.04	23°01'11"	N22°51'18"W	9.98
C14	52.00	74.36	81°56'10"	S06°36'12"W	68.19
C15	52.00	47.18	31°59'17"	S73°33'55"W	45.50
C16	52.00	44.94	49°30'58"	N55°49'58"W	43.55

OWNER / DEVELOPER:
JUSTIN CUTLER AND
J. D. EATHERLY
7024 CHURCH STREET
BRENTWOOD, TN 37027

REVISED: 5-02-08 - PER PLANNING COMMENTS
REVISED: 10-15-07 - PER PLANNING COMMENTS

CERTIFICATE OF APPROVAL FOR UTILITY SYSTEMS

I HEREBY CERTIFY THAT THE WATER AND SEWER SYSTEMS OUTLINED OR INDICATED ON THE FINAL SUBDIVISION PLAT ENTITLED "CUMBERLAND PLACE NORTH, SECTION FOUR, PHASE ONE" HAVE BEEN INSTALLED IN ACCORDANCE WITH CURRENT LOCAL AND STATE GOVERNMENT REQUIREMENTS OR A SUFFICIENT BOND OR CASH HAS BEEN FILED WHICH WILL GUARANTEE SAID INSTALLATION.

WATER SYSTEM June 12, 2008

SEWER SYSTEM June 12, 2008

CERTIFICATE OF OWNERSHIP AND DEDICATION

I, (WE) HEREBY CERTIFY THAT I AM (WE ARE) THE OWNER(S) OF THE PROPERTY SHOWN AND DESCRIBED HEREON AS EVIDENCED IN R.B. 2674, PG. 355, R.O.S.C. TENNESSEE AND THAT I (WE) HEREBY ADOPT THIS PLAN OF SUBDIVISION WITH MY (OUR) FREE CONSENT, ESTABLISH THE BOUNDARY BUILDING RESTRICTION LINES, AND THAT OFFERS OF IRREVOCABLE DEDICATION FOR ALL PUBLIC ROADS, UTILITIES AND OTHER FACILITIES HAVE BEEN FILED AS REQUIRED BY THE GALLATIN MUNICIPAL - REGIONAL SUBDIVISION REGULATIONS.

9 MAY 2008

20 MAY 2008

CERTIFICATE OF ACCURACY

I HEREBY CERTIFY THAT THE PLAN SHOWN AND DESCRIBED HEREON IS A TRUE AND CORRECT SURVEY TO THE ACCURACY REQUIRED BY THE GALLATIN MUNICIPAL - REGIONAL PLANNING COMMISSION AND THAT THE MONUMENTS HAVE BEEN OR WILL BE PLACED AS SHOWN HEREON IN ACCORDANCE WITH THESE REGULATIONS.

5-2-08

DATE

SIGNATURE

REGISTERED LAND SURVEYOR

DATE

CITY ENGINEER

DATE

SIGNATURE

REGISTERED LAND SURVEYOR

DATE

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SIGNATURE

REGISTERED LAND SURVEYOR

DATE

**CITY OF GALLATIN
COUNCIL COMMITTEE AGENDA**

October 13, 2020

DEPARTMENT: **Engineering**

AGENDA # 6

SUBJECT:

Resolution Accepting Public Improvements for Cumberland Place North, Phase 1, Section 4

SUMMARY:

The Planning Commission approved the GMRPC Resolution on September 28, 2020, to accept the public improvements for Cumberland Place North, Phase 1, Section 4.

RECOMMENDATION:

ATTACHMENT:

☒ Resolution
☐ Ordinance

☐ Correspondence
☐ Contract

☐ Bid Tabulation
☒ Other

Approved ☒
Rejected ☐
Deferred ☐

Notes:

RESOLUTION NO. R2010-59

RESOLUTION APPOINTING ROBERT MONTGOMERY AND BRIAN (MATT) HARRIS
TO GALLATIN CONSTRUCTION BOARD OF ADJUSTMENTS AND APPEALS

WHEREAS, Section 5-26 of the Gallatin Municipal Code provides for the creation of a Construction Board of Adjustments and Appeals with members appointed by the Mayor and confirmed by the City Council;

NOW, THEREFORE BE IT RESOLVED by the City of Gallatin, Tennessee that Robert Montgomery and Brian (Matt) Harris are hereby appointed and confirmed as members of the Gallatin Construction Board of Adjustments and Appeals with a term expiring on June 30, 2025.

BE IT FURTHER RESOLVED that this Resolution shall take effect from and after its final passage, the public welfare requiring such.

IT IS SO ORDERED.

PRESENT AND VOTING:

AYE:

NAY:

DATED:

MAYOR PAIGE BROWN

ATTEST:

CONNIE KITTRELL
CITY RECORDER

APPROVED FOR ENTRY:

SUSAN HIGH-MCAULEY
CITY ATTORNEY

CONSTRUCTION BOARD OF ADJUSTMENT AND APPEALS

BOARD MEMBER:	TERM EXPIRES:	RESOLUTION:
Ron Jones 107 Bluewater Drive Gallatin, TN 37066 (615)452-2082 Home (615)452-7731 Work rjonesco@bellsouth.net	6/30/2020	R16Ø5-25
Jeff Derryberry 313 Walnut Crest White House, TN 37188 (615) 452-8121 Work jeff@derryberryac.com	6/30/2020	R17Ø8-40
Oscar Moore 1008 Dobbins Pike Gallatin, TN 37066 (615)230-6260 Home	06/30/2021	R17Ø8-40
Steve Camp 118 Wayne Drive Gallatin, TN 37066 (615)452-8947 stevecamp@aol.com	06/30/2021	R17Ø8-40
Roger Matchett 113 E. Main Street Gallatin, TN 37066 (615)451-1505 roger@matchettandassoc.com	06/30/2021	R17Ø8-40
Jordan Wallace 1529 Hunt Club Blvd, Suite 500 Gallatin, TN 37066 (615)207-6348	06/30/2022	R17Ø8-40
Darrell Fleming 926 Hart Street Gallatin, TN 37066 (615)806-5233 fatherflem@gmail.com	06/30/2022	R17Ø8-40

5 Year Term (Staggered)

Appointed by Mayor and Confirmed by City Council

5 members and 2 alternates

No compensation

Qualifications: Members with knowledge and experience in the technical codes

Revised: 8/2017

Brian (Matt) Harris
615.934.4660
Matt@BrianHarrisHomes.com

I have been a resident and business owner in Sumner county for the past 12 years, I have enjoyed being part of the growth of Gallatin. I believe I would add industry knowledge and experience as a member of Construction Board of Appeals.

Professional experience summary:

2000-2006; Sales and business development.

Worked with several company's and industry originations to promote the application and installation of masonry products with a focus on concrete paving, masonry veneers and retaining wall systems.

- Instructor for the Interlocking Concrete Pavement Institute (ICPI) and National Masonry Association.
 - Instructed certification schools for retaining wall and interlocking pavement construction
- Developed masonry veneer products, authored technical installation manuals and industry performance guidelines

2006-2009; Anchor Wall Systems.

Anchor Wall Systems is an international company that specialized in mechanically stabilized earth (MSE) retaining wall systems. The focus of my work was to educate civil engineers and architects, both private sector and DOT on the application of MSE systems and how to design them for applications on civil site development and highway projects.

- Worked in partnership with the Florida DOT to create new design guidelines that enabled DOT engineers to utilize modular MSE systems on state projects. The systems and adopted designs saved the state of Florida millions of dollars on current and future projects.
- Worked with construction company owners to develop estimating, accounting and operational systems to better manage their companies.

2010-Current: Brian Harris Homes, LLC

TN Commercial, residential, and industrial (BC) contractor's license #63388

Brian Harris Homes, LLC is focused on building the highest quality homes in Sumner county, many of our projects are in the city of Gallatin. Our focus is designing and constructing homes that are designed to meet the unique needs of each of our clients. Many of the homes we build are in Fairvue Plantation and the Foxland communities.

2018-Current: Gallatin Multi-Regional Planning Commission

For the past two years I have served on the Gallatin Planning commission and currently serve as the Vice-Chairman. In my business I have seen firsthand the growth of Gallatin and as a member of the commission I enjoy the opportunity to help Gallatin with smart and sustainable growth for our city.



9/28/20

Mr. Chuck Stuart
Building Official
132 W. Main St.
Gallatin, TN 37066

Mr. Stuart,

Thank you for your consideration of including me on the City of Gallatin Construction Board of Appeals. I have been in this industry for 12 years, and I feel my experience would benefit the Board.

I graduated from Embry-Riddle Aeronautical University in 2006 with a degree in electrical engineering. After 2.5 years of working in the aerospace industry I moved back to Tennessee and joined my father in opening a mechanical, plumbing, and electrical engineering firm. In 2011, I became a professional engineer in the state of Tennessee. Currently I am licensed in Tennessee, Kentucky, South Carolina, and Mississippi.

I have been either the design engineer or principal engineer for the electrical design of hundreds of construction projects over the past decade. Our projects range in size from 1,200sf office build outs to large multi-family projects and factory buildings.

I am familiar the IECC codes suite, particularly the IMC, IPC, and IECC. I am primarily an electrical engineer and therefore I interact with NFPA 70 – National Electric Code daily.

If you have any questions or need more information, please feel free to reach out.

Regards

Robert A. Montgomery, PE
(615) 230-9089
robert@montgomeryengineering.com

**CITY OF GALLATIN
COUNCIL COMMITTEE AGENDA**

October 13, 2020

DEPARTMENT: Mayor's Office

AGENDA #

SUBJECT:

Resolution No. R2010-59 Appointing Robert Montgomery and Brian (Matt) Harris to Gallatin Construction Board of Adjustments and Appeals

SUMMARY:

RECOMMENDATION:

ATTACHMENT:

☒ Resolution
☐ Ordinance

☐ Correspondence
☐ Contract

☐ Bid Tabulation
☒ Other

Approved ☒
Rejected ☐
Deferred ☐

Notes:

RESOLUTION NO. R2011-60

RESOLUTION AUTHORIZING SUMNER COUNTY GOVERNMENT TO CONSTRUCT AN ADDITION TO FIRE STATION #3, 860 RED RIVER ROAD FOR THE PURPOSE OF HOUSING AN AMBULANCE AND EMS PERSONNEL

WHEREAS, the City of Gallatin Planning Commission approved GMRPC Resolution No. 2020-081 on 5/18/2020 approving a revised Final Master Development Plan for Gallatin Fire Station #3; and

WHEREAS, Sumner County EMS requested the revision for the purpose of adding an ambulance bay and EMS staff sleeping quarters to Fire Station #3; and

WHEREAS, Sumner County Government would be responsible for all costs and construction liability associated with requested addition to Fire Station #3, and

WHEREAS, it is in the best interests of the residents of the City of Gallatin to participate with Sumner County.

NOW THEREFORE BE IT RESOLVED BY THE CITY OF GALLATIN, TENNESSEE, that the City resolves the County is authorized to construct an ambulance bay and EMS staff sleeping quarters at Fire Station #3, and other building improvements required for the addition,

BE IT FURTHER RESOLVED that this resolution shall take effect from and after its final passage by the City Council, the public welfare requiring such.

IT IS SO ORDERED.

AYE:

NAY:

DATE:

MAYOR PAIGE BROWN

ATTEST:

APPROVED AS TO FORM:

CONNIE KITTRELL
CITY RECORDER

SUSAN HIGH-MCAULEY
CITY ATTORNEY